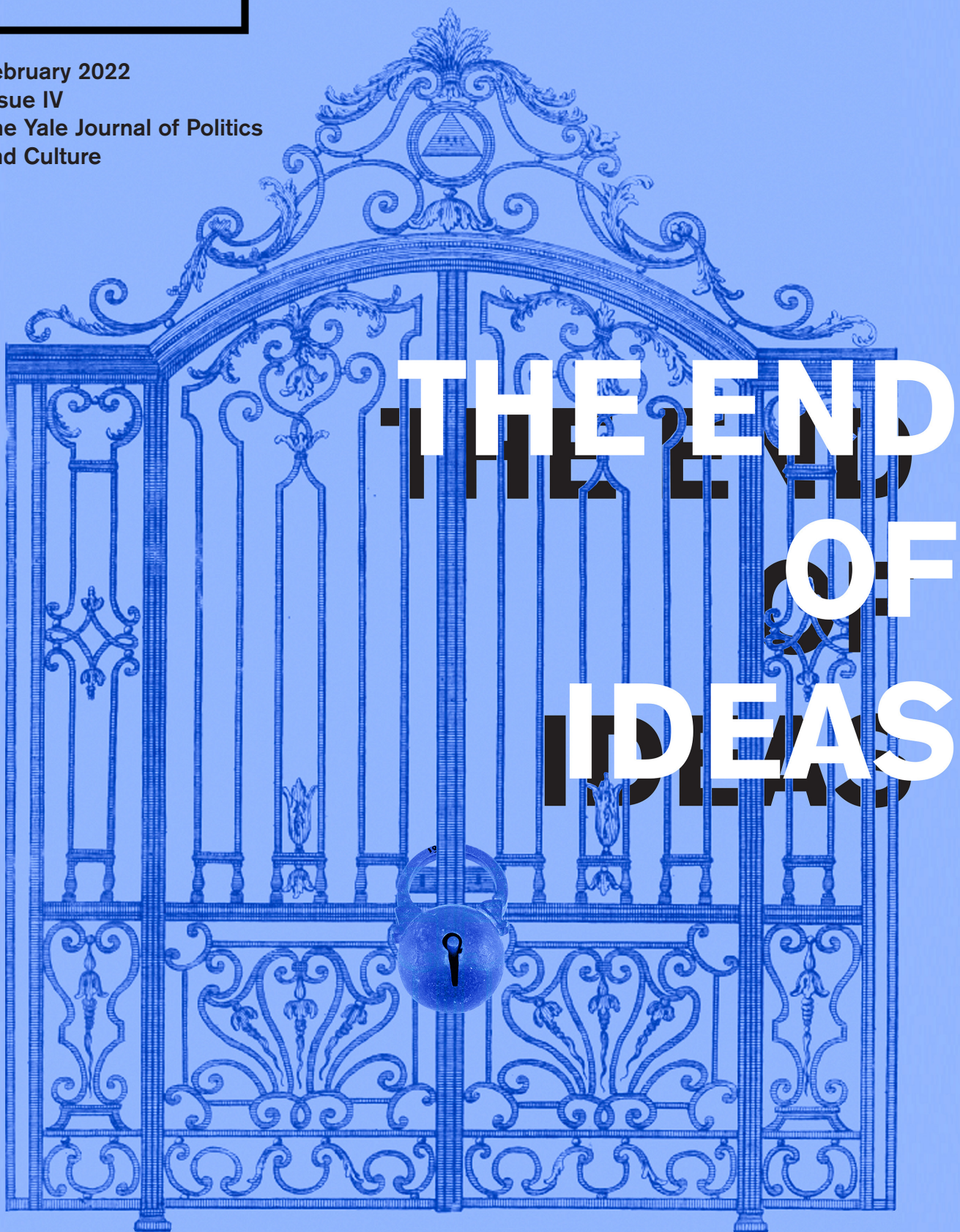
The Politic

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contents

The Politic

KYRA MCCREERY
staff writer

2 **LAS TIERRAS MALHABIDAS**
Soybeans, Land Reform, and Paraguayan Democracy

GAMZE KAZAKOGLU
staff writer

5 **A CRISIS OF DELAYS**
Navigating Yale's Overrun Mental Health Services

MARK VITI
contributing writer

10 **BALANCING ACT**
Big Oil's Future Amid the Climate Crisis

DAEVAN MANGALMURTI
contributing writer

13 **THE END OF IDEAS**
Liberation, Liberal Arts, and The Closure of Yale-NUS

RACHEL SHIN
contributing writer

25 **CUTTHROAT**
A Battle for the Future of Antitrust

BRYSON WIESE
print associate editor

30 **A RED STATE GOES GREEN**
Nebraska's Movement Towards Sustainable Utilities

ISIUWA OMOIGUI
print associate editor

36 **"YOU MUST CONSTRUCT NEW STORIES"**
A Conversation with Black Disability Rights Advocate Haben Girma

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SOYBEANS, LAND REFORM, AND PARAGUAYAN DEMOCRACY

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ABIDAS

BY **KYRA MCCREERY**

ON JUNE 15, 2012, a massacre in northeast Paraguay left 17 people — 11 landless farmers and six police officers — dead. Seven days later, in a lightning-quick trial, the Paraguayan Chamber of Deputies voted 76-1 to impeach Fernando Lugo, Paraguay's left-leaning, democratically-elected president.

Lugo's political opponents cited the president's poor performance, negligence, and nepotism as the rationale for his removal. Yet as the trial drew to a close, that fatal clash far from the capital city overshadowed the proceedings, a simmering reminder of the land disputes and socioeconomic divides that plagued Lugo's presidency until the bitter end.

The deadly entanglement in northeast Paraguay one week before Lugo's fall is only a sliver of the story. His rise and fall is the culmination of centuries of tangled Paraguayan politics, a story nestled within the legacies of colonialism, democratic fragility, and persistent strife over land distribution — all bound together by an industry at the core of the Paraguayan economy: soy.

The opening chapter begins in the sprawling soybean fields of Curuguaty — an agricultural region in the northeast. There, waves of genetically-modified soy stretch for miles on end, punctuated only by the occasional truck transporting harvested soy to a nearby industrial plant to be processed into soymeal or oil.

Northeast Paraguay was not always a hub for industrial soy cultivation. The rise of large-scale monoculture agriculture is a twenty-first-century phenomenon. During the latter half of the twentieth century, Paraguay's economy depended on exports of tannin, cotton, tobacco, and meat products. Today, the soybean industry comprises 40% of Paraguayan exports and over 10% of the country's GDP.

The "soybeanization" of Paraguay has transformed an export economy rooted in small-scale agriculture into a mechanized industrial powerhouse dominated by American agribusiness corporations and upheld by a government representing the interests of the right-wing political elite.

The colonial roots of this transformation are strong. In 2003, an advertisement in Latin American newspapers by the North American agricultural giant Syngenta coined a neologism for the soybean dependency of Latin America, mapping out the Southern Cone of Latin America into a nation-state called "The United Republic of Soy." The expression captures the sentiment underlying the growth of the soybean industry today — economic development and soybeans are inseparable, no matter the cost to Paraguayan communities, ecosystems, and democratic processes. The sentiment eerily channels the Banana Republics of the late twentieth century, when monoculture and export-based production jumpstarted Latin American economic stagnation. Since then, disillusioned peasant farmers hopeful for representation in politics and substantive policy change have advocated for land reform and soy regulation. Still, the relentless Paraguayan soybean machine has continued to churn.

This was the political context fueling Fernando Lugo's extraordinary ascent to the highest tier of Paraguayan government in 2008. A former Catholic bishop inspired by the intersections between the Christian theology of liberation and social reform, Lugo crafted a political platform cen-

tered around responding to the plight of landless peasants disappointed by decades of empty promises. His sweeping reforms tackled deeply-entrenched poverty and corruption, illuminating a pathway toward a new dawn of Paraguayan political equality.

Lugo pledged to impose a five percent tax on soy exports to curtail the power of the soy industry, aimed to limit the use of chemical pesticides in soy production, and proposed a massive land redistribution program to return landless *campesinos* land owned by a fraction of the country's powerful politicians and business moguls.

But Lugo's ambitious campaign promises were mired in political disagreement and parliamentary ineptitude from the very start. To resonate with a more diverse political base, Lugo selected right-wing political leader Federico Franco as his vice-president, and the conservative Colorado Party maintained a majority in Congress throughout Lugo's presidency. Attempts to pass land reform were shot down at every turn, and the president's zealous message slowly evaporated into a presidential term that did not deliver on many of its initial promises.

Were Lugo's soy reforms doomed to fail from the start? Or is democratic progress in Paraguay still within the realm of possibility, despite Lugo's cataclysmic fall from power in 2012?

To look for answers, one must delve further into the past. The origins of Paraguay's soybean transformation are embedded in a brutal dictatorship that defined the nation's political landscape for much of the late twentieth century. In 1954, General Alfredo Stroessner assumed the presidency, inaugurating a 35-year reign of repressive authoritarian rule. Stroessner tightened his grip over Paraguayan politics by fostering alliances with Paraguay's landowning elites, masquerading his transfer of land to political allies as policies ostensibly designed to promote peasant land ownership. Rural farmers began to refer to the land redistributed by Stroessner as *las tierras malhabidas* — the ill-gotten lands.

The agrarian disparities spawned by the Stroessner regime manifest in the pervasive land inequalities of the present. In Paraguay, 21% of landowners control 85% of farmland — making Paraguayan land ownership one of the most disproportionate examples of agrarian inequality in the modern world. Every year, approximately 9,000 rural families are displaced as soybean production expands, a process that has resulted in the relocation of hundreds of thousands of *campesino* families to impoverished urban areas over the past decade.

Even *campesino* families that avoid forced relocation are not spared from the effects of soybean production. The proliferation of agricultural chemicals and genetically-modified soybean strains practically has spawned environmental degradation.

Beginning in the 1990s, farmers witnessing their crops and livestock perish at alarming rates frequently opted to relocate to cities. Yearly soy cultivation in Paraguay utilizes over six million gallons of pesticides and herbicides, a volume classified by the World Health Organization as extremely hazardous. The elevated rates of respiratory infection, cancer, birth defects, and miscarriage documented in communities adjacent to commercial soybean farms substantiate the claim that the toxic implications of soybean cultivation transcend the political sphere. The wounds created by commercial soy cut deep in local communities.

Tensions erupted on June 15, 2012. The deadly confrontation between campesinos and police forces in the northeast soybean district of Curuguaty catapulted simmering political apprehension into sudden momentum. Seventy landless peasants believed it was their right to inhabit land owned by a wealthy Paraguayan politician with connections to the Stroessner regime. When armed police forces confronted the peasants, the bloody conflict that catalyzed Lugo's collapse took shape.

Lugo's political opponents acted swiftly to reconstruct the entanglement as a pretext for his removal from power. When Lugo was ousted, his former vice president Federico Franco was promptly installed, enabling the soybean industry to further intensify its economic domination.

The conflict in Curuguaty has continued to influence political discussions into the present. The Paraguayan justice system held the peasants responsible for the tragedy. The deaths of the eleven *campesinos* killed were never investigated. Families of the murdered peasants and policemen alike continue to wonder what really happened that fateful day. Blas Riquelme, the wealthy owner of the land, maneuvered stealthily through the courts to reinforce his legal proprietorship of the terrain as the affected peasants advocated for justice.

In 2016, five years after the massacre, families of the victims illegally remained on the property in Curuguaty. The peasants participated in subsistence farming, growing cassava, corn, beans, and mamón. Alberto Castro Benítez, one of the peasant farmers jailed after the 2012 massacre in Curuguaty, commented in *Ultima Hora* on the fuel the massacre provided for the peasant cause: "We were harmed, but it doesn't weaken us, the fight just started. When I was released, the first thing I did was come to Marina Cué and continue my fight to conquer. They offer us poor people jail and death only later."

Though the soy industry continues its reign a decade after the Curuguaty massacre, unrest amongst the landless poor offers a glimmer of hope for an era of real change. Amidst the golden sea of soy stretching miles across the Paraguayan countryside, the seeds of resistance against the industry have taken root, though progress is slow and exhausting.

a crisis of delays

navigating yale's overrun mental health services

BY **GAMZE KAZAKOGLU**

Content warning: This article contains references to suicide.

WHEN JAMES HUTCHINSON '24 called Yale's Acute Care Emergency Line and told the operator that he was considering suicide, he was told to expect a counselor assignment in a month. For now, however, he was advised to "go for a walk." Hutchinson, who requested a pseudonym to remain anonymous, was assured that his counselor assignment process would be expedited, given the urgency of his situation. By the time Hutchinson spoke to *The Politic* in January, it had been over two months since Hutchinson first called the Acute Care Emergency Line. At the end of February, he still did not have a counselor.

"My personal experience with the Office of Counseling and Mental Health has shown me that even someone like me, that is, an at-risk student, can't get help," Hutchinson told *The Politic*. He worries about what this means for others in crisis. "It's making me a little bit scared that other students aren't getting the help that they need. It's scary to me because it might be indicative of a larger problem," he said.

Students have been drawing attention to experiences like Hutchinson's increasingly over the past three years. In 2019, Molly Shapiro '21 wrote an article for *The Politic* that highlighted similar problems: Students seeking mental health services at Yale often had to wait months to receive support, and the Yale College Council Mental Health Report found that only 31.5% of students agreed that the length of time they waited before receiving help was reasonable. Shapiro's article also documented that there were insufficient resources to meet students' increased

“It’s making me a little students aren’t getting need. It’s scary to me b indicative of a larger p

demand for counseling and called attention to a lack of published data from Yale Health about student wait times. These problems linger to this day.

“THERE’S SOMETHING DEHUMANIZING about the fact that you can say, ‘Hello, I am in need of help,’ and the system won’t get back to you for months,” said Joe Brown ’24, who requested a pseudonym. Brown has used Yale’s mental health services in the past, and he wondered, “How much could the system possibly care about me, if they’re not going to take the time to reach out?”

Yale University’s student body is made up of over 12,000 people, all of whom are entitled to mental health care from Yale under free Yale Health Basic Coverage. Yet the Yale Mental Health & Counseling website only lists 50 full-time providers — one provider for every 240 students. While Yale’s mental health resources were strained before the COVID-19 pandemic, the stressors of the last two years have prompted more students to seek out help, according to Hoffman.

While Yale’s mental health resources already lagged behind student need before the onset of COVID-19, universities across America are experiencing the same COVID-19 induced surge in demand as Yale is now. Amy Biancolli, a staff reporter for “Mad in America,” recently documented this crisis in college and university counseling services, finding that the wait time for a session can be as much as six weeks in many schools. Though as the third-wealthiest university in America, Yale’s resources greatly outpace almost all other schools, this wait time is typical at Yale too.

“Yale is facing the same problem that so many colleges and universities are facing, which is that we’re in the middle of a mental health crisis,” said Laurie Santos, a professor of psychology at Yale, the head of Silliman College, and the director of The Good Life Center. As mental health staffers seek to accommodate as many students as possible throughout the pandemic, the mental wellness of mental health providers has taken a hit as well. “The resources available really are outstripped by the demand,” she concluded.

Yale Mental Health and Counseling is actively working to increase its number of counselors. In an interview with *The Politic*, Paul Hoffman, the Director of Yale Mental Health and Counseling (YMHC), said it has been a “challenge” to keep up with the year-after-year volume increases along with the increase in students due to higher enrollment this year. YMHC has seen in excess of 800 more students this year than during the same period of time last year. It is in year one of a three-year hiring plan intended to correlate staffing levels to demand.

CITING EARLY RESEARCH that the pandemic has particularly impacted the mental health of high school and college-aged people, including increases in depression, anxiety, eating disorders, and substance abuse, Hoffman suggested several reasons why this may be the case: Greater social isolation during a critical period of social development, as well as constant changes to the learning environment as students switch between online and in-person instruction, are two significant factors he points out.

In order to address this problem at the onset of the pandemic, the YMHC immediately switched to virtual therapy and was able to continue seeing many students while they were at home and in different states. The YMHC was able to do so because of emergency orders allowing out-of-state treatment. In states where this was not possible, YMHC created an out-of-state benefit so that no student would be without access to mental health treatment.

In response to high demand, Hoffman explained that YMHC is in year one of three of a planned increase in the number of clinicians, and that YMHC opened a second location at 205 Whitney Avenue to accommodate the new therapists. Furthermore, YMHC expanded their group therapy program and now allows students to participate in individual and group therapy simultaneously.

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"The biggest change that will be noticeable to students is the increase in the number of clinicians," Hoffman said."It may take time for the full effects of the increase to be felt, but our aim is to decrease the amount of time some students may have to wait for treatment and to increase the amount of time each student would have in therapy."

While changes are underway, many undergraduate students continue to complain about long wait times to be matched with a YMHC clinician. If and when students finally overcome the long wait times, they often remain unsatisfied with their care, due to issues such as short session times and being matched with the wrong type of mental healthcare provider.

Evelyn Brooks '24 initially reached out to the YMHC on October 12, 2021, to request an appointment with a therapist, and completed her initial intake on October 20. But it wasn't until January 27 that her current therapist reached out and informed her that his next available spot was February 18.

"That's over four months that I had to wait just to get a single session. And all that I got was a 30 minute zoom call," Brooks, who requested a pseudonym, told *The Politic*.

During those four months of radio silence from YMHC, Brooks' mental health worsened. Shortly after reaching out to the YMHC, she was sexually assaulted. A professional not affiliated with Yale diagnosed her with post traumatic stress disorder.

"Obviously, I know that I can't change the past or say for certain whether or not things would turn out differently," Brooks explained. "But I'm sure having a therapist during that time as I went through that traumatizing experience probably would have changed the trajectory of my healing process and made things significantly easier. I suffered in silence, shame, and self-blame for so long, and I felt like I had no one to turn to. And perhaps, things would have been different if I could have seen someone at Yale Mental Health and Counseling Center. I think about this a lot."

Hutchinson finally heard back from the YMHC, and learned that he was assigned to a psychiatrist. However, it was not the assignment he had asked for.

"I was assigned a psychiatrist, but I had already communicated to [YMHC] that I was taking prescribed medication from a doctor back home. Essentially, I already have a psychiatrist. I didn't really need another one. I wanted talk therapy from a different provider," Hutchinson explained.

Eric Moore '24, who requested a pseudonym, had a similarly frustrating experience. When he initially reached out to the YMHC back in September, he informed them multiple times that he was running low on his ADHD and anxiety medication. After a month passed with no response, Moore called the clinicians on their mobile number to ask them if he had been matched with a clinician yet. He was told that, although they didn't have a psychiatrist for Moore yet, they could provide a temporary person to prescribe his medication.

In his initial intake interview, Moore remembers, he informed the YMHC that a temporary clinician prescribed him medication for his ADHD, which is a short term release — meaning that, for two to three hours, the medications help him to study and focus. However, Moore wanted to try an extended-release medication for ADHD under the long-term guidance of a psychiatrist.

"So I decided to go back to the same person who gave me the short-term medicine last time from Yale and explain to them the situation," he told *The Politic*. "Their response was that my question was more for a psychiatrist. And I was like, 'Okay, I know it is, but I haven't been matched with a psychiatrist yet. So, what do I do?' And so it has just been like back and forth like that."

Even when students are finally assigned to a professional through YMHC and find a time slot that works for both them and their therapist, students report that the duration of their therapy of 30 minutes isn't often enough time.

“At the peak of my vulnerability, she would just cut me off and send me home”

“I’m not blaming this on the individuals, I blame this on the system. You could be in the middle of talking about a very serious and emotional topic, and crying,” said Brooks, who had waited four months to talk to a Yale therapist. “But, at the end of your 30 minutes, they have someone else they need to see. So you’re kind of out of luck at that point.” According to Moore, the natural consequence of shorter sessions is the risk of decreasing their quality, despite individual efforts by therapists and psychiatrists to improve the experience.

Leila Abbott ’24, who requested a pseudonym to remain anonymous, echoed these sentiments. In the second semester of her first year, Abbott had her first session with a Yale therapist. Abbott saw her therapist until March, but eventually stopped attending, frustrated by the way her overworked therapist would be five minutes late for an appointment, let her talk for about 20 minutes, and then would suddenly interrupt her just to schedule their next appointment. “At the peak of my vulnerability, she would just cut me off and send me home,” Abbott recalled.

Experiences such as this, Hoffman suggested in a follow-up email to *The Politic*, are a function of YMHC’s policy to accept new clients at all times, which differs from mental healthcare practices outside of Yale. Students often come to YMHC expecting the same exact experience they have had when they have sought treatment through clinicians in private practice without realizing that they are completely different systems. Clinicians in private practice only take new patients when they have dedicated space to offer them. When they do not have the time, they simply do not take new patients and are “full,” Hoffman explained.

YMHC, however, is never “full” and will take new patients regardless of how many students are currently being seen, according to Hoffman. “Because of this, clinician’s time at YMHC is a resource that is shared among all Yale students, and when there is a rapid increase in the number of students seeking treatment, some students will be seen less often and some students will need to wait to receive individual therapy. The first priority is to see the students with the greatest need.” In this way, “one of the greatest strengths of YMHC” — their commitment to seeing all patients — “also creates challenges,” wrote Hoffman.

Hoffman also emphasized that YMHC offers more short-term and long-term treatment options than most college counseling centers in the country. Most counseling centers only offer short-term treatment, group therapy, or case management. YMHC offers “much more” to its students, but “in the process can become more vulnerable to large surges in utilization or significant increases in acuity.”

OTHER THAN the increase in the number of providers from 34 to 50 since 2019, the most significant change in Yale’s mental health services for undergraduates is the Yale College Community Care (YC3) program that launched in the spring of 2021, which is co-led by Mental Health and Counseling and Student Affairs. The new program, staffed by eight full-time mental health practitioners, is meant specifically for undergraduate students, as opposed to the traditional YMHC resources which serve the entire university. Each Yale student is entitled to four 30-minute sessions with a YC3 clinician.

According to Nicole Taylor, a college care clinician at YC3, YC3 is a program that integrates mental health and wellness services. While the clinicians on the YC3 team are also Mental Health and Counseling staff, the wellness specialists on the YC3 team are part of Yale College Student Affairs.

YC3 was created to give students easy access to short-term therapy appointments that can be scheduled on-

line, part of the clinician increase Hoffman described. The YC3 staff members are trained clinicians and community wellness specialists, and can act as a temporary alternative while students wait to receive more permanent care. Beyond one-on-one therapy sessions conducted by clinicians, community wellness specialists offer virtual workshops on sleep, mindfulness, and stress management, which Brooks found "super helpful." While YC3 is not a replacement for YMHC services, students have found it an effective form of stop-gap mental health care.

Santos was pleased that Yale College's expanded mental health offerings coincided with the COVID-19 pandemic, when students had even more need for support than in the past.

"While it's not necessarily fixing all the problems that we have at Yale mental health and counseling, I think the new YC3 program is an excellent step in the right direction in devoting staff members particularly to the needs of Yale College students," Santos explained. "And in some ways this is unprecedented in terms of what Yale has done for mental health support for students so far."

Taylor of YC3 also echoed Santos's sentiments, encouraging students to utilize the mental health resources that are available to them. "Yale offers a significant amount of mental health resources compared to other colleges, but during a time when there is unprecedented demand for mental health treatment, it is important for students to remember all the resources that are available to them," Taylor said in an interview with *The Politic*. She emphasized that YC3 is designed to work in conjunction with Mental Health and Counseling to meet the demands of students who need wellness resources or quick access to short mental health counseling. "While it may take time to get connected to an individual counselor at YMHC for some students, YC3 is always an option for students even if they are waiting to see someone at MHC. Through YC3, Yale has taken the approach of building different types of mental health and wellness resources that can meet different student needs."

Taylor also suggested that YC3 remains "adaptable" — meaning that the team is offering several virtual programs and short-term therapy groups in response to the topics students are raising during individual sessions.

"This serves as an excellent support for students who may not be able to immediately get individual therapy within MHC or as an additional support to students who may not see a therapist as often as they wish," Hoffman said.

Back in summer of 2021, Brown used YC3 while he was living on campus. Initially, he reached out to receive an intake appointment with YMHC. However, because he had taken a leave of absence during the 2020-21 school year, his Yale Health Basic Coverage — which allows all Yale undergraduates to take advantage of YMHC services free of charge — had been paused, and his request was denied. After contending with the administration about the lack of mental health services available to students who had taken leaves of absence, the administration recommended he try using YC3.

"I was screaming from the rooftops that I needed help. And like, the best I can get was like a 20 minute session," Brown explained in an interview with *The Politic*. After two sessions, Brown stopped using the YC3 services.

Brown did not have a negative experience with YC3, he emphasized, but he still "would not sing its praises," he said. "It served the function I needed it to serve." Brown said that he had recommended YC3 to other Yale students who needed immediate care. "If you are currently in crisis and need someone to talk to, it's not perfect, but it's better than nothing."

"I BET THE THINGS YOU WRITE ABOUT in this article will be jarring to some, but surprising to none," Abbott, who had withdrawn from counseling because of her negative experience with short therapy sessions, said.

For Abbott, the issues within the YMHC system expose a problematic reality within the student body — that "good mental health care is becoming the privilege of the few, or rather, the privilege of the wealthy." Abbott noted that, in her conversations with friends, she has observed that students, not satisfied with YMHC, often seek out mental health care with therapists or psychiatrists outside of Yale. This outside therapy is usually not covered by health insurance and can cost hundreds of dollars a session. Thus, quality mental health care becomes an issue of socioeconomic and financial inequity — while some students who are stuck using the Yale Mental Health Care, others' families can afford therapy outside of Yale.

For years, students have been documenting dire mental health needs and deficiencies within YMHC. Now, we're two years into a pandemic that has exacerbated mental health issues to an extreme degree. Yale has recognized these persisting problems to some degree and has introduced new programs in response, yet core issues such as inappropriate wait times and short therapy sessions remain the same. Shapiro's 2019 *Politic* article and others since then chronicle similar complaints among the student body, prompting the student body and administration to take stock of where we are amid a period of increasing attention toward and exacerbation of student mental health challenges.

Because this is no abstract problem. "Every Yale student is either going through something like this, or knows someone who is," Abbott said.

BIG OIL'S FUTURE AMID THE CLIMATE CRISIS

BY **MARK VITI**

AFTER PURCHASING $750 million in equity of energy giant Shell, Daniel Loeb demanded something radical: He wanted his investment dismembered. Loeb, CEO of the hedge fund Third Point LLC, penned a passionate Third Quarter letter to his investors wherein he outlined the competing interests within Shell. To Loeb, Shell's simultaneous commitments to fossil fuels production and renewable energy sources have resulted in "an incoherent, conflicting set of strategies attempting to appease multiple interests but satisfying none." Loeb's solution? Balkanize Shell into multiple companies, each with a narrow focus.

Loeb's actions garnered attention from various actors in the struggle over climate action and opened questions about the most effective way to change polluting companies from the inside. Loeb is a so-called "activist investor," a Wall Street insider who buys huge shares of companies to change their corporate structure. Recently, activist investors have targeted Big Oil companies to make them climate-friendly. By splitting Shell into different companies, some focused on renewable energy production, others focused on phasing out fossil fuels, Loeb contends the incentives for each new firm can be aligned with a vision of a green future. A green offshoot of Shell would no longer be impeded by connections to Shell's oil and gas divisions and could meaningfully change what kind of energy the world consumes.

But can large corporations effectively balance interests in hydrocarbons and green energies? For Yale Professor of Economics Charles Hodgson, they can.

"Companies produce products that compete with their existing product line all the time," Hodgson told *The Politic* in an interview. Consider Sony's evolution in the production of audio equipment. Sony was an industry leader in the production of cassette tapes, but also pioneered CD and DVD technology. Sony effectively phased out an old technology while profiting from pioneering new, competing products. In Hodgson's words, "There is no reason why old and new products cannot coexist within one company."

Needless to say, Shell and other energy giants oppose their own dismemberment. In their view, they can balance these competing interests, and their scope and scale uniquely enable them to lead the transition to renewable energy.

Economies of scope occur when the production of one good reduces the cost of producing an associated good. For example, if a firm produces marshmallows, it would require few alterations to its production processes to produce marshmallow fluff. Since these goods are related, it is more efficient for one firm to produce both goods instead of two firms each producing one good. When Shell claims they rely on economies of scope to transition to green energy, they are claiming that their existing technologies, infrastructure, and market knowledge reduce costs and expedite their ability to produce sustainable energy.

Assessing Shell's claims about the importance of scope can be tricky, especially from outside the company. For the effects of scope to be tangible, there must be some identifiable benefit

BALANCIN

to having a presence in many different markets. Economists recognize that there might be validity to Shell's argument for the benefits of scope. Hodgson points to a mobile, global workforce of engineers and experts, and a global network of transport and trade infrastructure as possible advantages of having a significant foothold in conflicting energy markets. "Shell started as an oil shipping company and later transitioned to an extraction and production company," Hodgson said. "The industry lends itself to global firms of scope."

In an interview with *The Politic*, Yale Professor of Economics Jose-Antonio Espin-Sanchez recalled Bell Labs — an American research giant that underwent a similar process of segmentation. Bell Labs reorganized to remain competitive in the market, but after the reorganization, the sum of the remaining parts was not comparable to the unified lab.

In a June 1991 article in the preeminent journal *Science*, senior researcher Al Cho illustrated the problems with reorganization: "What if you wanted a microscope and were told that you can't have one because all the microscopes are in the other division? In the reorganization, people were reshuffled and relabeled, but what we really needed was a vision." A divided Shell could run a similar risk, and a unified corporate strategy could leverage their infrastructure and expertise to support sustainability efforts.

However, Hodgson is not convinced that Shell and other energy giants truly rely on scope to drive their sustainability efforts. Unlike oil and natural gas, green energy is often produced locally. Instead of shipping oil across continents, green energy firms install solar panels for specific houses. For Hodgson, "It's not obvious that the same advantages of scope apply in the green energy industry."

Big Oil also claims that the sheer scale of its operation enables them to use profits from oil production to fund innovations in sustainability. But, if Shell can break into smaller companies while maintaining the advantages of size — namely access to capital — then Shell's green energy efforts would not suffer due to a smaller scale. As it currently stands, Shell is the fourth-largest company in the world oil market by market capitalization, a measurement of corporate value. Breaking the green energy division of Shell off into a separate entity might allow it to become a relatively larger player in a smaller green energy market. Even a small piece of Shell could still be a powerful market force. In this way, Shell's green division could use its market presence to bring about a sustainable future faster than Shell's current corporate configuration.

Despite Hodgson's analysis suggesting that companies like Shell could lead the transition to a green future, the hesitancy of Big Oil to make changes to green energy arises from different perspectives on the severity of the climate issue.

While Hodgson discussed firms' theoretical ability to balance interests between fossil fuels and sustainability, Hodgson noted that theory often fails in practice. Ultimately, CEOs and managers dictate the speed at which companies adopt and fund new endeavors. "Management at Shell and investors have different perceptions over the changing policy environment and the existential risk of climate change," Hodgson said. "I'm sure the concern over climate change is genuine. The disagreement between parties arises over how quickly this needs to happen." Pushy executives in legacy oil and gas departments might have disproportionate influence over the distribution of resources inside of Shell, even if the broader corporate strategy prioritizes sustainability.

For Espin-Sanchez, the behavior of activist investors might be explained by these internal boardroom conflicts and not by a genuine desire to radically alter the corporate structure. "Activist firms often try to correct differences in management. In this case, management might be overlooking opportunities in green technology and these investors are drawing attention to these possible profits," Espin-Sanchez told *The Politic*.

Selin Goren '24 has worked both in the United States and in Turkey to pass legislation, change corporate behavior, and raise public awareness to address the climate crisis. In an interview with *The Politic*, Goren discussed her work with Turkish appliance company Arçelik as a prime example of the importance of corporate leadership acknowledging the urgency of climate change.

"Arçelik had not been involved in sustainability," Goren explained, "but then CEO Hakan Bulgurlu took over the company."

ACT

I'm optimistic about change in general, but these companies are here to stay in the short term. The best thing we can do right now is to change their behavior for the better.

Bulgurlu shifted the company's focus toward sustainability and green technology. Bulgurlu climbed Mount Everest to raise awareness for climate change, and Arçelik began to fund climate efforts.

Unlike some climate activists, Goren's experiences with Arçelik have made her confident that management changes can truly alter a company's approach to the climate crisis. Goren attended conferences organized by Arçelik that brought together youth activists, climate scientists, business leaders, and journalists. As a part of these conferences, Goren presented a sustainability report in a press conference with Bulgurlu. "The change in CEO changed the entire philosophy," said Goren.

Despite the complexities of industrial organization and corporate politics, there is some consensus on the next steps. Espin-Sanchez and Hodgson agree that the government cannot intervene in the structure of Shell and other energy giants. Legally, forcing these companies to change their internal organization would be difficult. Economically, it is unclear whether politicians could assess the most efficient way to organize these companies. Third Point and other activist firms will have to use their corporate sway to reorganize and reprioritize a green future.

Hodgson notes that policymakers have an obvious option to assist activist firms' green mission: Tax carbon. "We should be taxing carbon emissions. If we tax appropriately, we provide the incentives to invest appropriately," Hodgson argued. A carbon tax would incentivize Shell and others to realistically assess the roles scope and scale play in their operations. If scope truly assists in the transition to sustainable energy, a carbon tax would incentivize Big Oil to keep its current structure. However, if competing interests prevent Big Oil from properly innovating, then a carbon tax could nudge these corporations to adopt a new structure.

The future of the climate crisis is further complicated by Big Oil's control over politics and information. In October 2021, executives for Chevron, BP, Shell, and Exxon testified to the House Committee on Oversight and Reform about their alleged disinformation campaign against climate action. Big Oil loves to spur consumers into a frenzy by claiming that any action that hurts its operations increases energy costs for consumers. In reality, economists believe consumers might have little to fear from the reorganization of Shell. Espin-Sanchez believes it would require several large companies to fracture for prices to noticeably rise. Hodgson and Espin-Sanchez both noted that the OPEC cartel, an international organization including Saudi Arabia, Venezuela, and Iran that fixes oil production to set the world oil prices, dominates the energy market. In essence, OPEC ensures that Shell, despite its size, cannot single-handedly set global energy prices.

Goren, smiling with cheerful eyes, spoke hopefully even as she discussed the existential challenges facing our generation. Even as someone who understands the severity of the climate crisis and has dedicated countless hours to community education and divestment efforts, Goren still has faith that some investors and board executives are genuinely trying to make a difference. "There are people not satisfied with the current system and think it is fundamentally flawed," said Goren. "Not all firms can be trusted, but our only other option is to let businesses go on as usual. I'm optimistic about change in general, but these companies are here to stay in the short term. The best thing we can do right now is to change their behavior for the better."

Liberation, Liberal Arts and the Closure of Yale-NUS

BY **DAEVAN MANGALMURTI**



On August 25, 2021, Luke Davies YNUS '23 got an email from the Yale-NUS administration. There would be a town hall the next day at 9 a.m. Classes were canceled. "Imagine they're going to tell us the school is closing," he joked to a friend.

That's exactly what they did.

With over a thousand students, faculty, and staff listening, Tan Eng Chye Ph.D.'89, President of the National University of Singapore (NUS), laid out the future of Yale-NUS, the autonomous Singaporean liberal arts college jointly established by Yale and NUS in 2011. In 2025, Yale-NUS' existence would end. Its spirit, he claimed,

Regardless of how it's interpreted understanding. It is a microscope with which to view Singapore, and at the meaning of a liberal arts ed

would be merged into NUS' "New College," a nebulous initiative to expand access to the liberal arts in Singapore. Yale would be involved in an "advisory" role.

"Personally," Davies — who requested anonymity as an international in Singapore — told me, a bitter smile taking over his face, "I started laughing."

Tanya Sharma YNUS '23 remembers crying and sobbing. The announcement was a betrayal, a loss, and a shock. Just two weeks before, Yale-NUS faculty had released a report on updating the school's curriculum. In recent months, students had been advocating new financial aid policies and writing relationship advice columns in the school newspaper. With the announcement, all of that washed away. Sharma told me in an interview, "It was very much the equivalent of grieving the loss of a loved one."

The words of Tan's announcement were conciliatory. "We are extremely proud of what Yale-NUS has achieved in the past 10 years, and this experience has contributed to a re-imagining of undergraduate education at NUS. Our strong belief in the importance of interdisciplinarity, forged through our valuable partnership, has led to the establishment of the New College."

In an email to the Yale community, President Peter Salovey Ph.D.'86 was equally positive. "Yale takes great pride in the accomplishments of Yale-NUS College," he wrote. He added, "We would have liked nothing better than to continue its development."

Yale, it turned out, had played no part in the decision to close Yale-NUS. Yale's administration had only been informed of the decision in July — at the same time as Yale-NUS' own president, Tan Tai Yong. "You'd think the president of Yale-NUS would have some influence on Yale-NUS closing," Davies said bitterly. "But no." NUS had taken the decision unilaterally.

In the days after Tan's announcement, the Yale-NUS campus was alight with activity. Students and alumni mobilized against the decision, publishing petitions and approaching parliament for answers. Theories ran rampant about why the school was really being closed. Was it because of funding problems and new educational priorities, as Tan claimed? Or were other forces — nationalism, authoritarianism, populism — at work? The students I interviewed spoke of searching for someone to blame, bouncing from Yale to Yale-NUS president Tan Tai Yong to Tan Eng Chye and the Singaporean government itself. And many simply coped with devastating, overwhelming grief.

In official statements, at least, the reasons for Yale-NUS' closure were finances and equity. In a September 11, 2021 blog post, Tan wrote, "Since I became President in 2018, Yale-NUS' finances have weighed heavily on my mind… Despite hard work and best attempts by all parties, Yale-NUS raised less than 80 million Singapore dollars (S$) of endowed donations, about a quarter of the over S$300 million target which is required to build an endowment of around S$1 billion. So, even with generous government seed funding and matching, the Yale-NUS endowment is much smaller than needed to sustain it." In the initial merger announcement, NUS stressed expanded access: "Two new colleges at NUS to deliver flexible, interdisciplinary education more accessibly, and at greater scale."

On January 4, NUS announced that the "New College" would be named NUS College. Although the new school has yet to begin operating — it's currently accepting applications for 2022–2023 — a shiny, glossy website promises "a chance to create something remarkable" in a model that "blends the distinctive qualities" of Yale-NUS and another NUS program, the University Scholars Program. But the school, in keeping with the prevailing political winds, will be far more insular than its predecessors: 80% of slots are reserved for Singaporean students.

To many of the Yale-NUS students I spoke to, the announcement of

d, Yale-NUS is worth e with which to study Yale, a lens d a telescope with which to peer ducation in the 21st century.

"NUS College" was a final, brutal blow. "It's a slap in the face," Davies said.

When asked at a town hall how Yale-NUS students feel about the establishment of the new college, Grace Yuen YNUS '23 remembers Tan Eng Chye saying, "You can ask any student you see about how they feel about NUS College. Ten out of ten would say they're okay with it." Yuen was emphatic: "That's bullshit."

Despite promises from NUS leadership, Yale officials, and NUS College's nascent administration that NUS College will carry forward much of Yale-NUS' liberal arts DNA, many of the students I heard from were skeptical. Yuen mentioned hearing from one Yale-NUS professor working on the NUS College curriculum committee that pressure was being applied to integrate science and math into every aspect of the school's course offerings. The purpose of the new school, she said, was not to continue the liberal arts but to replace them with an interdisciplinary education, a point stressed in the NUS announcement of Yale-NUS closure. She saw "interdisciplinarity" as a sort of marketing strategy that would provide Singapore with a semblance of the liberal arts but without the accompanying dissent, freedom, or will to change.

Six months after the merger announcement, the buzz on campus has transitioned from pushback to simply preserving what is left of Yale-NUS' culture, academics, and purpose. Interest in Yale-NUS, especially on Yale's campus, has faded to sporadic articles about developments since the closure.

But the story of Yale-NUS, from beginning to end, is far too interesting — and far too tragic — to be neglected. Yale-NUS was, at its best, a successful attempt at the reinvention of the liberal arts, carried aloft by incredible students and a dedicated faculty. It was, at its worst, an exercise in hubris and greed doomed to failure by the weakening resolve of one parent and the growing ambition of the other. Regardless of how it's interpreted, Yale-NUS is worth understanding. It is a microscope with which to study Yale, a lens with which to view Singapore, and a telescope with which to peer at the meaning of a liberal arts education in the 21st century.

And it began, as things often do, at Davos.

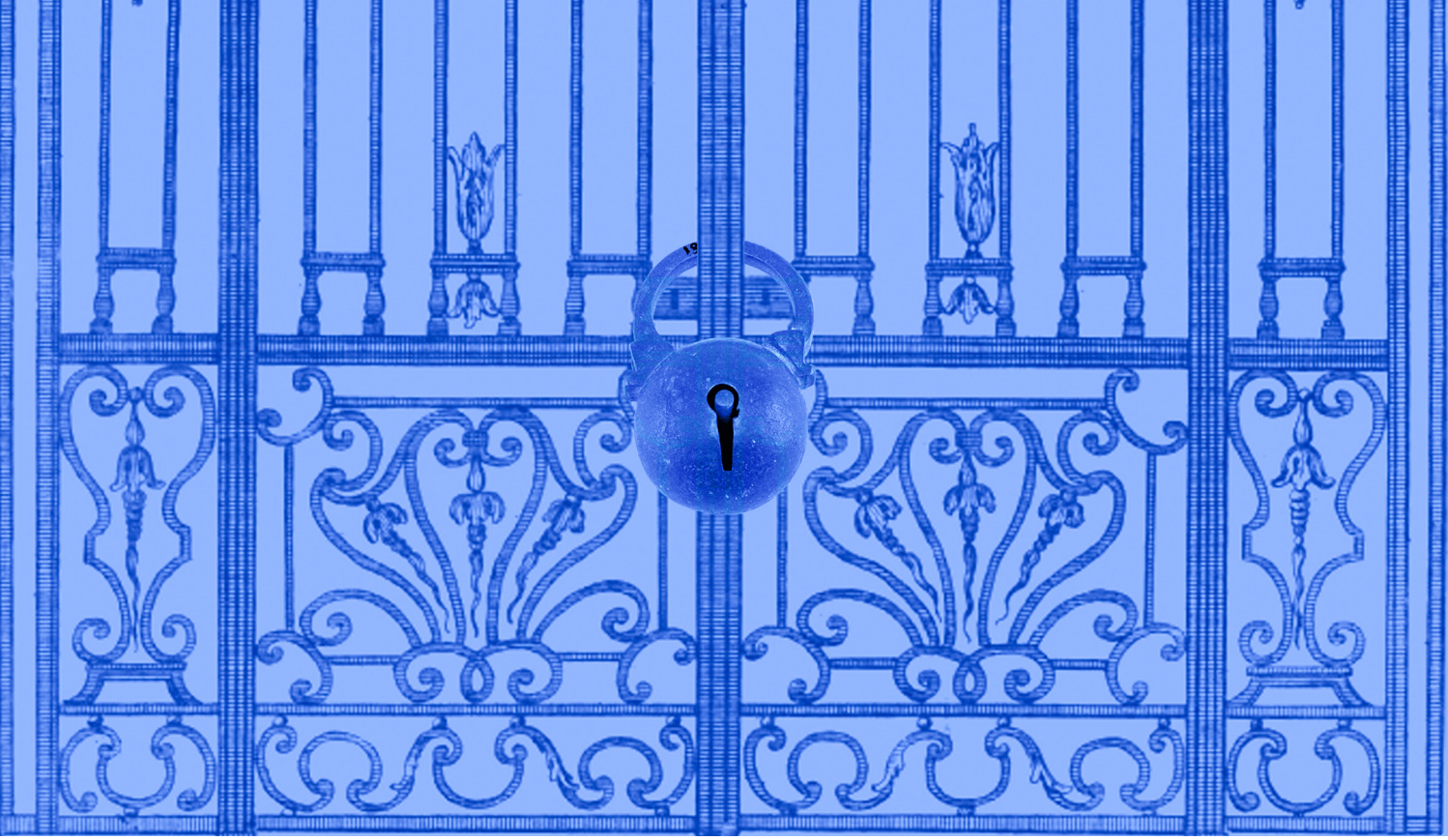
A CONNECTICUT COLLEGE IN SINGAPORE

January 2009. Davos, Switzerland. The World Economic Forum, a gathering of the global elite. Over a cup of tea, Tan Chorh Chuan, then-president of NUS, makes an offer to Richard Levin, president of Yale University. Let's build a liberal arts college. In Singapore. We'll put down the money. You bring the know-how.

In 2007, Singapore's International Academic Advisory Panel had published a report that advocated for "exploring the possibility of creating a small liberal arts college" associated with NUS. But none of the institutions NUS approached — Warwick University, the Claremont Colleges, Haverford College, and Williams College — seemed all that interested. Discussions with each school had fizzled. But Yale wanted in. By September 2010, a Memorandum of Understanding was signed between Yale and NUS agreeing that they would explore the idea of setting up a joint college. Seven months later, in April 2011, the exploration became definite: Yale-NUS would welcome its first class in 2013.

"Singapore came to us," Professor Charles Bailyn '81 stressed to me in an interview. "This was a Singaporean initiative to found a liberal arts college, and they figured they needed some other institution with a deep background in this to build it with them. It wasn't Yale looking for a campus, it was Singapore looking for a partner."

Bailyn remembers being called to a meeting with Levin in 2009. "'Charles,' [Levin] asked, 'how would you like to reconceive the liberal arts education from the ground up with no constraints?' And I said, 'Well now, that sounds very interesting.'" As he said this, Bailyn broke into a boyish grin. A few months later, during a conversation with officials from NUS and the Singaporean Ministry of Education, he whispered to President Levin, "You know, if this goes forward, I'm really interested." Forty-eight hours later, Ba



ilyn relayed, "I'm back in his office and he says, 'I've got a deal for you.'" Bailyn went on to serve as the inaugural Dean of Faculty at Yale-NUS, a role in which he shaped the design, curriculum, and instruction of the college.

Levin's pitch to Bailyn speaks to the way Yale understood the Yale-NUS venture, and to one reason why it took the Singaporean offer: It was a chance to redefine the liberal arts for the 21st century. "We were convinced that we were building something that would still be there 400 years in the future," Bailyn told me. The spirit of scholarly rediscovery and renewal pervaded the whole of the Yale-NUS enterprise.

"Humanities are dying at so many universities across America," Mira Seo, one of Yale-NUS' first faculty, said at a 2012 panel. "I wanted to go somewhere they were growing. That place turned out to be Singapore." The college, Bailyn said, was "truly 21st century but in the liberal arts tradition." Even the new institution's opponents understood that goal. "[It was meant] to reconceive liberal education for the world, as well as Yale," former Yale professor James Sleeper '69, one of Yale-NUS' most persistent critics, told me.

That idea had a lot of appeal to a lot of people across the world. "It's not every century that Yale starts a college," Andrew Hui, another early faculty member at Yale-NUS, told the Yale Daily News in 2012. "For me, this will be a once-in-a-lifetime opportunity to build something from the ground up." "Once-in-a-lifetime" is a phrase that comes up frequently in reference to Yale-NUS. For people who approached Yale-NUS as a chance to imagine a liberal arts ideal, their lives were separated into before Yale-NUS, and after. "I noted that when I departed from Singapore I would become an old man," Bailyn wrote in a 2017 article for The Octant, "in the sense that my most important work would be behind, not in front of me. After a year away, I still believe this is true… nothing will ever compare with what I was privileged to be a part of at Yale-NUS."

For some of the college's architects, the fervor inspired by Yale-NUS took on quasi-religious overtones. "Our work was the liberal arts experience made manifest," Professor Pericles Lewis told YaleNews. "Yale-NUS will be a place of revelatory stimulation." The fervor of Lewis' words is a reminder of Yale's long history as a missionary school — a strand of the school's spirit that accompanied the focus on a liberal arts education as Yale crossed an ocean to establish Yale-NUS. Singapore may have come to Yale. But Yale, like any good missionary, saw a people in need of saving.

"Yale itself was founded by graduates of an older university — at Cambridge, in England — who intended to carry revelatory stimulation across an ocean to a strange people in a strange land. Like the Yale-NUS founders, they intended their new 'city upon a hill' to set an example for both their coreligionists and their oppressors back home, where their faith was beleaguered, as liberal education is in America now," Sleeper wrote in one of dozens of essays on the establishment of Yale-NUS.

The Yale missionary inclination has crossed oceans before, most notably in the creation of the Yale-in-China Association two hundred years after Yale's founding to proselytize both Christianity and education in China. And even as the religious aspect of Yale's identity has faded, the urge to evangelize has been paired with other interests.

"Bringing liberal education to Singapore partook of the old Christian subthemes," Sleeper said. "Do I think Rick Levin sat up all night thinking

that way? Not at all! They grafted that mission of liberal education onto that old [religious] spirit and the commercial spirit."

And for all the emphasis on reviving a liberal education, Yale certainly had a commercial interest in the establishment of Yale-NUS. Sleeper described the Yale tradition as "wealth-making, truth-seeking, power-wielding."

And there was wealth to be made in Asia. Reporter Karin Fischer said in an interview with me that in ventures like Yale-NUS, "Americans were the partners with expertise. They were the partners with prestige. What the international partners often brought was desire and the need for human capital development. And money, which is not inconsequential." At Yale-NUS, the money was definitely not inconsequential. This wasn't just because Charles Goodyear IV '80, Trustee of the Yale Corporation, was appointed CEO-designate of Singapore's state-owned holding company in 2009. Nor was it just because the Singapore Ministry of Education and NUS were footing the bill for the college's design, construction, and foundation. It's also because Singapore may have paid well for Yale's expertise. According to one rumor I could not confirm, hundreds of millions of dollars were donated to Yale in exchange for its participation in the project.

The deal, to Yale's administration, must have seemed to have no drawbacks. Like an artist in the Medici court, the school would receive a patron's generous backing to paint the future of liberal education on a blank canvas. Lewis recalled, "I just had such a fun time. It's like you get a blank sheet of paper and [ask], 'How do we build an excellent college?'" "Forces resisting change do not exist," as one report rather eerily put it. Yale wouldn't just get to buff its reputation. It would get to cement it. Yale: "a university of global consequence."

The focus on marketing Yale as an international university with global clout was, in Sleeper's and Fischer's opinions, a key factor in the Yale-NUS partnership. Salovey, then provost of the university, seems to have agreed with them. He called Yale-NUS an opportunity "to influence — and be influenced by — the introduction of the liberal education in Asia… to make potential students and scholars more aware of Yale University in a part of the world that is already investing in ways to augment and improve higher education."

In an interview, the movements of his mint-green fingernails punctuating his points, Michael Sagna YNUS '23 seconded Salovey's viewpoint. "[It's] an amazing addition to the Yale brand in Southeast Asia, which is such an untapped region." If Yale-NUS succeeded, it would show just how much influence Yale wielded — and how it was redefining education for this century.

Entangled as they were, the mingling of many motives has always made Yale-NUS' raison d'être difficult to unpack. Was it an esoteric journey into the soul of the liberal arts? A move to establish Yale as a leader in international education? A holdover from Yale's Puritan ancestors? "Nobody is really sure what the real motivation for creating it is, and so consequently people are free to speculate," Marko Micic '15 told the Yale Daily News in a 2012 article.

Perhaps that's because Yalies often forget the unlikely couple's other half. What in the world did NUS want so badly with a liberal arts college?

The answer to that question is inextricable from Singapore's dreams for its future. The city-state is often described as an "entrepôt." It's a massive commercial hub, facilitating trade and transactions between East and West, Global North and Global South. One thing it wasn't moving around much? Ideas. Lewis said, "Many Asian countries look at the U.S. and the dynamic economy and the dynamic culture and ask, 'How is that related to the kind of education you have?'"

"There is always a right answer [in Singapore schools]," Yuen told me. According to Yuen, a Singaporean citizen, this is true everywhere from elementary school to the country's most prestigious universities, including NUS. At 15, students are streamed into educational paths based on their academic strengths. Once placed in a stream, Yuen said it's hard to escape the current. "[There's an] unspoken rule that people who do science are more intellectually superior to the arts." STEM students end up at well-funded national universities. Arts students may not end up at university at all.

Throughout the education system, little to no emphasis is placed on critical thinking or creativity, even at wealthier schools with more academic options. "Memorizing, memorizing, memorizing" is the basis of

"[Yale-NUS] was an exercise in learning about other cultures and institutions, seeing things through other lenses, finding and forging common ground, and resoluteness in charting a way forward that is respectful of different perspectives… These, and other ideals associated with liberal arts education remain appealing and relevant to Singapore now as they were then."

Singapore's education, Davies said. "It doesn't teach you 'Who are you?' 'What do you believe in,'" Angela Hoten YNUS '23 explained. "We're asked these really big questions at Yale-NUS. Things we're not exposed to in Singaporean education."

By the 2000s, leaders at the Ministry of Education and in Singapore's corporate world had decided that needed to change. Bailyn was told in one meeting that his job was to produce "the Singaporean Steve Jobs." Davies agreed. "They need to invite students to think outside the box if Singapore wants to evolve further." Yale-NUS was a pragmatic way to achieve progress.

Lily Kong, President of Singapore Management University, chaired the Singaporean side of the task force that helped design Yale-NUS. She told me in an email interview that "[Yale-NUS] was an exercise in learning about other cultures and institutions, seeing things through other lenses, finding and forging common ground, and resoluteness in charting a way forward that is respectful of different perspectives… These, and other ideals associated with liberal arts education remain appealing and relevant to Singapore now as they were then."

The problem, then and now, was that a liberal arts education doesn't exactly seem compatible with the country also known as "Disneyland with the Death Penalty." And that's where the critics unleashed their fire.

STRANGE BEDFELLOWS

Across the hundreds of pages Sleeper has written opposing Yale-NUS (over 21 articles, at last count), his argument has been consistent. "[There's been an] all too smooth convergence of their kind of state capitalism and our kind of corporatism that does not bode well," he told me. "Each side learned from the other in ways that are not necessarily good for the soul of liberal education." Sleeper's argument has a resonance that won't be unfamiliar to a Yale student dissatisfied with the Yale administration's latest move to treat students as customers, not students.

During the early 2010s, Sleeper was one of a group of Yale faculty that led the charge to stop Yale-NUS — or at least to show the colloquium's displeasure with the establishment of the new institution. Faculty resistance came to a head with a 2012 vote on a resolution authored by Professor Seyla Benhabib Ph.D.'77, that read, in part, "[Civil liberty and political freedom] lie at the

heart of liberal arts education as well as of our civic sense as citizens, and they ought not to be compromised in any dealings or negotiations with the Singaporean authorities." The resolution passed 55%-45% in a spirited debate among almost 200 Yale College faculty. Benhabib, Sleeper (who is also Benhabib's husband), professor Victor Bers, and professor Christopher Miller, were among the many faculty who saw the establishment of Yale-NUS without their explicit consultation as an affront to the spirit of the university — and as a dangerous cooperation with an autocratic state. "A government that severely constricts human rights, civil liberties, and academic freedom" was how Benhabib described Singapore.

Even Benhabib's opponents agree on the last point. "It's an autocratic, one-party state," Bailyn told me, bluntly. "It has actual laws against gay male sex."

The nature of the Singaporean state is especially clear to the students who live in its shadow. Davies said, "Singapore has done a great job of instituting fear and suffocation… They do a really good job of hiding [the reality of Singapore]."

In Reporters Without Borders' 2021 World Press Freedom Index, Singapore places 160th out of 180 countries. "Singapore's political environment is overwhelmingly repressive," begins the Human Rights Watch's description of the country. It doesn't get much worse than that.

For Bailyn, all this made Singapore "just the kind of place where you want to have a liberal arts college." To opponents of Yale-NUS, it was a sign that greed and naïveté had suborned Yale's values.

Many were especially aggrieved by the disregard the decision seemed to show for Yale's faculty. Anders Winroth, a history professor, told the Yale Daily News in 2012 that "he thinks the dissatisfaction some faculty members have with governance and decision-making processes at Yale underlies the debate on Yale-NUS." The new institution became a proxy for tensions at home, and for a certain indignancy. "Do we need to go to Singapore to advance interdisciplinarity and a revival of the liberal arts?" Benhabib asked. "What exactly have been the obstacles to holding it here in New Haven?"

Such was the power of these concerns that even the American Association of University Professors joined the chorus, asking for answers about freedom of expression, queer rights, and political and civil liberties. "In a host environment where free speech is constrained, if not proscribed, faculty will censor themselves, and the cause of authentic liberal education, to the extent it can exist in such situations, will suffer," they wrote in an open letter. "How Yale addresses these issues has implications not only for the Yale community but also for higher education as a whole."

Even when it was clear that Yale-NUS was fait accompli, critics like Sleeper and Benhabib continued to pursue the issue — out of principle and concern more than anything else. Sleeper especially focused on the nature of the cooperation between universities and illiberal regimes. "American universities may be legitimizing such regimes more often than liberalizing them… by mistaking the 'international' or 'global' for the liberal and universal, they have committed themselves to regimes that exploit liberal education's fruits but crimp its ways of discovering, preserving, and disseminating knowledge."

All of this, in Sleeper's view, was contributing to the decline of the liberal arts and the rise of a new force: the multicultural careerist. He said, "[There is] a more colorful global managerial elite that no longer answers to any democratic or republican polity's moral code. It answers to the imperatives of the markets."

As schools like Yale internationalized, to paraphrase one Levin-era report, they were losing the educational elements that made them great in the first place. Sleeper said, "Yale always tried to straddle that divide between power-wielding and religious truth-seeking, prophetic dissent and imposing order and law." In Yale-NUS, both then and today, Sleeper and his compatriots saw the crumbling of that brilliant old order. "Americans are losing their mastery of the arts and disciplines of their own domestic nation-building and democracy promotion, along with liberal education's great conversation across the ages about lasting challenges to politics and the human spirit. Yale… has lost its way."

In their fears of loss and destabilization, Yale-NUS' American opponents are mirror images of many Singaporeans. "A lot of the older generation especially," according to Yuen, "they do not understand what the concept of a liberal arts education is."

There is even a sense that such an education is meant to dismantle and destabilize the system. Sagna told me that "Yale-NUS is easily the most unpopular college, we have such a bad reputation. People think we're all radical liberals." The reaction to its establishment was lukewarm, and the reaction to its closing, especially online, almost ecstatic. "Look at these fake white liberals, their school is falling down. Yippee!" was how Asha Arora YNUS '23 — who requested anonymity as an international in Singapore — characterized popular feeling.

"Generally, across Singapore, there is this sentiment that Yale-NUS is this elitist, ivory tower school," Hoten emphasized. "[There is] this idea that liberal arts education is liberalism. It's a very strange blurring of two things that are very different." As a result, she and other students believe that Yale-NUS has been misunderstood by most Singaporeans. Davies added that a fair portion of the public sees the university as "the CIA putting Western ideology [into Singapore] to indoctrinate the wonderful Singaporean Confucian values. [Even though] Singapore doesn't really have any Confucian values."

In other words, Yale-NUS was a school the people of Singapore might never have wanted. It was a school many at Yale definitely never wanted. Its motivations were obscure, its purpose unclear. And yet: It persisted. And if it worked, in any way, it was the students who made it work.

CHASING A DREAM

"It was the only school I applied to for university," Hoten told me. "I wanted a liberal arts education," said

Sagna. "It was an opportunity for me," said Daniel Soh YNUS '23.

Every student I spoke to about Yale-NUS waxed almost rhapsodic about the college. "It felt human in a sea of institutions that were very robotic," said Davies. "[The] education protects us in a way that we can explore the possibility of activism," Hoten told me. "A lot of very popping people," Sagna said, adding, "So many cool people who have actually changed Singapore. Whereas [at Yale], it's people who will change the U.S."

"My whole experience at YNC has been overwhelmingly positive to the extent that I would often question it: 'Is this too good to be true?" Sharma told me. "It's not some kind of utopia, but [it's] far ahead of its time."

That journey started with the class of 2017, Yale-NUS' first. "They took a real leap of faith," Bailyn recalled in his interview. "They were more committed to the vision than we were" — to the extent that a rock band formed by members of the class called itself "A Community of Learning," after one of the college's early mission statements. It was the inaugural group that shaped Yale-NUS' culture into one that attracted a self-selecting group of students who cared about ideas — not the usual fare of Singaporean education.

Hoten explained that, in Singapore's depoliticized society, Yale-NUS is an aberration. "There's this belief that students have voices." At Yale-NUS, topics verboten at other Singapore universities are not just allowed, but openly debated. "We never felt a boundary to the kind of student life we could have," Hoten said. Issues like sexual assault responses, mental health, and queer rights were openly advocated for, in sharp contrast to other Singaporean universities. "There was this sense that if we argue our point, we can get it."

As Yale-NUS pushed for change in many ways, Singapore took notice. Students' climate change activism, peer mental health counseling, and LGBTQ+ student organizations were replicated on other university campuses and across Singapore. At NUS, the approach to student life problems like sexual assault was wildly divergent. As Davies put it, "He's got a 3.9 GPA, he's a good boy, why you gotta blow this up so much?" was what sexual assault survivors would hear. At Yale-NUS, Sharma said, that wasn't the case. "People would act to solve problems."

Students also spoke of a kaleidoscopic array of personalities and cultures on the Yale-NUS campus, which was consistently around 40% international students and 60% Singaporeans. "At Yale-NUS you're always introducing yourself as 'Oh, I'm from this country,'" Arora said. Yuen described the environment in which she grew up in Singapore as "monolithic," a sort of "engineered diversity." "Yale-NUS was true diversity." The campus culture could come as culture shock, said Yuen, but it also distinguished the college from anything else in Singapore.

Key to this culture was an academic experience oriented around the Common Curriculum, a shared roster of courses in philosophy, sociology, literature, and the sciences that every Yale-NUS student takes over their first two years. "Very, very intentionally designed… a powerful shared experience for us" was how Sharma described the program. Davies said, "We read Marx for a while… we read Foucault, which [is] ironic, [since we live in a panopticon]."

Every student I heard from described the Common Curriculum as the keystone of Yale-NUS. Soh said, "I think a lot of our difference can be attributed to how the Common Curriculum is structured — we have 10 classes where we're just thrown into a random mix of classmates… The texts are very varied, and there has been significant thought in generating a diversified curriculum that integrates regional culture." Hoten emphasized that the experience of examining the vast dimensions of human culture and society that begins with the Common Curriculum is a vital thread throughout the Yale-NUS education. "We're exploring what it means to be human. That's what made it worth saving."

Sarah Chiang '22 said that "A lot of the students were people who cared deeply about issues in their world." This was especially apparent in Yale-NUS' impact on queer life in Singapore. The college was home to Singapore's first gay rights group, The G Spot, which has shaped the national conversation about queer rights and sparked the foundation of similar groups at other university campuses. Hoten stressed that Yale-NUS was a place for "really authentic self-expression… in terms of being able to be queer. Just straightforwardly queer."

It was surprising to me how much of the initial vision for Yale-NUS has persisted over the years, despite well-publicized incidents around dissent and censorship in Singapore, as well as the day-to-day stresses of mental health and overwork. Yale-NUS undergraduates from around the world referenced the same cultural touchstones — a liberal arts tradition, an incredible sense of community, a campus that felt free from restraint even as it fought against oppression — that faculty dreamt of in 2012. Bailyn said, "It was a real shock to see the thing come to an end. Because it didn't come to an end because it had failed… The vision survived reality, which doesn't always happen." There was a sense I felt, as I listened to the students talk, that they were part of a tremendous effort that had succeeded, in spite of its ephemerality, in doing something special. On this, Arora said, "Yale-NUS is the model of what a liberal arts education should

look like."

Reflecting on Yale-NUS, Davies said, "It was a way of cementing Singapore as the most forward-thinking, innovative country in Asia, one that was willing to expand into new horizons and embody a more nuanced and critical form of education. That's good PR. That achieves Singapore's goal of being the most advanced, the most innovative nation in Asia."

Davies added, "I'm not sure what changed along the way."

FAILURE IN SUCESS

"When it was first announced," Sagna said, "we were all up in arms about the [closure]." Yale-NUS students and alumni mobilized to publish letters, sign petitions, and lobby the highest echelons of power for answers. "We brought some questions to parliament as well, two weeks after the announcement," Hoten said. "That's kind of unprecedented."

Hoten was one of several students who helped form #NoMoreTopDown, a movement that united Yale-NUS students with other students in disbanded NUS programs seeking answers. "There were people who were very sympathetic… then the sympathy started to turn into 'Why are you so angry?'At that point it was much harder to make a public appeal."

In addition to longstanding hostility to Yale-NUS as a bastion of elitism, liberalism, and Westernism, both NUS and the Ministry of Education pushed a narrative that cast doubts on the enduring value of Yale-NUS as it was. Hoten said, "[There's this] increasing insularity about Singaporean identity, and I think that has fed into how Yale-NUS has been perceived as a foreign college." There is something to this perception. It was, after all, founded by emissaries of the Ivy League on a beautiful campus isolated from the rest of the city, almost like a colonial mission. Even if its students are very different from the architects, those nuances are often lost to the casual observer. Hoten used a bit of Singaporean slang to describe popular opinion of the college by the time the closure was announced: "there are lots of ang mos in the school."

Ang mo, a word used to describe white people or Westerners, was pegged from the beginning to Yale-NUS' identity — a fact the Singaporean government used to its advantage. In advertising the establishment of the "New College" and shutting down criticism, the authorities stressed a new equality in the works. "The argument was that it was to expand education," Sagna explained. It was an argument that found justifiable currency among Singaporeans unsure of Yale-NUS' purpose and wary of its position as a place where students could drink, think, and link.

But there has always seemed to be more to the closure than the simple bullet points of fundraising problems and equity concerns. "NUS made it clear that it was a financial decision, and that the size of our endowment was insufficient to sustain our continuous operation," Soh told me. "I think that's a fair point, but it raises the question of whether sufficient runway was given for us to raise the necessary funds. Our fundraising was compared to liberal arts colleges in the U.S. that have had hundreds of years to develop a sizable endowment."

Chiang doesn't buy the financial argument either. She said that she thought the idea for NUS College had been gestating for some time. "They felt like having Yale-NUS around would be too much." The announcement, in Hoten's view, was a way for NUS to define itself as a great global university — alone.

There was a sense I felt, as I listened to the students talk, that they were part of a tremendous effort that had succeeded, in spite of its ephemerality, in doing something special.

Even more than that, there were personal, political and cultural motives behind the end of Yale-NUS, all mixed with an overweening concern, from the highest levels, about what effect the liberal arts were having on Singapore.

Some of Tan Eng Chye's recent comments, and the number of articles he's written about interdisciplinary education, lend credence to theories that the merger was really about controlling how and what people learn. Hoten told me — in a comment that rings true — that interdisciplinary and liberal arts have started being used interchangeably in official statements. She also recalled one town hall where Tan told a questioner, "'You are very perceptive. I don't think this kind of American liberal arts education can exist in a Singaporean framework.'"

Tan's prominence and power have evoked especially strong criticism from some students. "[The closure] was this power trip that one man was going on. 'I am making this historical change because this is my dick-measuring move,'" Arora said acerbically. "Even the vice provost of NUS didn't know this was happening." Nor did anyone else.

At first, both Davies and Sagna remember being furious with Tan Tai Yong, the then-Yale-NUS president. But, despite criticism of his handling of the decision, they agreed he was largely not to blame. "Every semester we'd meet three times for breakfast," Sagna said. "He completely was blindsided by this. I remember he was as shocked as I was… He didn't know anything about it until July, or that's what he told us, and I believe him."

With even Tan in the dark, Yale-NUS faculty were equally clueless. Two weeks before, they had published a report incorporating student feedback on updating the Common Curriculum. The report drew on months of time and energy. They never knew.

All this, according to the students I spoke to, points to decision-makers much higher up than Tan — and possibly outranking even the Minister of Education, Chan Chun Sing, who explained the decision to close Yale-NUS in parliament and has been something of a rabble-rouser against foreign influence in Singapore.

"Chan Chun Sing is also a mouthpiece," Hoten argued, citing his ignorance of basic facets of the Yale-NUS education during the parliamentary standoff. "An unspoken thing among Yale-NUS people, there is a sense that this decision came from the very, very top people in the [People's Action Party]," Singapore's autocratic, permanent ruling party. "It's a top political move, but there's no way to prove it."

Davies summed up the reasons for the closure with two words. "Deviation and defiance… The powers that be were unsatisfied with the nature of YNC and what it was propagating and what it was allowing… The school was eventually going to shut down. I personally thought it was going to take 10–15 years."

"The belief that students have voices," in Hoten's words, was Yale-NUS' animating spirit. That spirit was simply incompatible with what Singapore wanted the college to be.

In the news of the closure and the resulting developments, writers like Sleeper have seen a validation of their early prophecies that a liberal arts university in bed with an authoritarian single-party state was never going to last. In a piece following the announcement, Sleeper cited "Kenneth Jeyaretnam, former secretary general of Singapore's opposition reform party, who tells me that 'The Singapore Government thought that it could have the trappings of a world-class liberal arts college without the freedom that goes with it, and that it could be tightly managed and spun to show the superiority of Asian values. It didn't work out that way.'"

Sleeper advocates for renewal in the United States, where liberal values are already in danger, rather than expansion abroad, where it is likely to leave schools like Yale with black eyes they can ill afford. "We'll need to renew our own civil society's institutions, including its colleges, as 'places of revelatory stimulation,' where the experience of liberal education is 'made manifest' more vividly than it has been in most of our lifetimes," Sleeper wrote. In other words, the same promise as Yale-NUS, but at home.

There are still innumerable ambiguities and nuances to the merger, closure, end — whatever you choose to call it — of Yale-NUS. What does seem clear, from my conversations with faculty, students, and writers around the



In the end, the students drove it, and the students lost the most.

world, is that there is no single factor here, no overwhelming cause. Politics, personal and national, created an atmosphere of hostility. Funding and equity provided a useful pretext. And the power of education — the same thing everyone comes back to, whether they're a sixty-something Yale professor or a young woman from Western India — was the core claim all these issues revolved about. But, as Sagna reminded me, there's likely to be something missing. "There's no trust. If you tell me ten different reasons for something happening, most likely none of them is the real reason."

The school was a success, but not the success Singapore wanted. It failed, but not as its critics expected. In the end, the students drove it, and the students lost the most.

And then there's Yale.

FATHER AND SON: THE WORTH OF AN EDUCATION

"Yale-NUS is the bastard child of a father who abandoned it and a mother who never wanted it," Davies joked. The extent to which that is true is debatable, but it's an emotion felt keenly around Yale-NUS' campus. In spite of Yale's hands-on role in Yale-NUS' founding — most of its initial senior leadership was drawn from the Yale faculty — by the time the students I spoke to were at the college, the school had become an entity of its own. If there was a parental relationship in the near vicinity, it was between Yale-NUS and NUS itself. "We had so little contact with Yale for so long," Davies explained. "It would have been nice to see Yale fight a little more [for us]." Parents, after all, should be there when they're needed. Instead Yale simply seemed to fade away — or worse. A year before the announcement, Sagna wrote an article sharply dismissive of Yale's role in Yale-NUS' upbringing. "We must stop viewing Yale as a solution to any of our problems," he exhorted his readers, "and start viewing it for what it really is: a self-interested institution which birthed Yale-NUS solely to extend its brand in Asia, showing up on our campus often to criticise, but rarely to help."

Many of the students I spoke to weren't quite as vitriolic as Sagna. But whether we're talking about criticism or neglect, almost everyone agreed both were par for the course. For most of the past five years, Yale played little role in Yale-NUS' quotidian existence. Sharma said, "There isn't a very huge relationship between the two schools in your day-to-day life at Yale-NUS."

And Yale-NUS played an equally minor role in Yalies' routines. But the question Fischer said remained unanswered is one that still matters. There was a lot of talk about Yale sending to Yale-NUS, Arora said. But she thought the opposite might have been more appropriate: The question should have been, "What is Yale learning from Yale-NUS? What is the point of building something like this when you're still listening to old white men? A general desire to learn and humility from Yale's stature would have been good to see." A liberal education, in the view of many I spoke to, is about conversations. That never seemed to take place between Yale and Yale-NUS.

She's also realistic about what Yale-NUS means now that it's gone. "I need a 300-year-old institution attached to my name after coming from a failed startup college." Whatever it was, Yale-NUS still wasn't complete. "We're an institution with a lot of growing to do," Davies said, his voice pained. "[Now] I have a degree from a university that doesn't exist."



One infinitesimal change Yale has made since the closing, though, is increasing the numbers of Yale-NUS students it takes as "exchangers." In the spring 2022 semester there are 28 Yale-NUS students at Yale on exchange, up from around 16 in most years. For some, the experience has been striking — and frustrating.

"I think that now that I'm here I understand the similarities between our institutions," said Sagna. "The dining hall signs — it's the same sign. When you come here, it really reminds you of NUS [especially in] the way Yale and Yale-NUS look after their students… Now that I'm here, I'm so disappointed by what Yale hasn't done. Not by what it has done, but what it hasn't done. I think Yale isn't being transparent. I think there were definitely some conversations about Yale moving to a higher level of commitment, and Yale moved away from that… Yale imported the ideas of how to run an institution to Yale-NUS."

Chiang didn't completely agree. "[Yale-NUS is] very distinct from Yale. It's not a mini-Yale by any means." But still, she felt that much of what makes

Yale, Yale, appears to have manifested itself in its Singaporean offspring. "It's more of a Yale thing than an NUS thing," Yuen said. She described a landscape of butteries, residential colleges, and dining hall furniture purportedly imported from Yale. "Down to the hand sanitizer dispensers it's exactly the same."

The difference, Yale-NUS' founders hoped, would be that Yale-NUS would do certain things better. If not the hand sanitizer, maybe the curriculum. "Initially, I think the thought was that what was developed and learned at Yale-NUS was a two-way street," Fischer said. But from her perspective, Yale didn't get all they hoped for either: "it's unclear to me what it's meant for Yale in the long term. It was not clear how any of this would be carried over and incorporated."

Lewis, despite his pivotal role at both institutions, didn't seem to know either. When we spoke, he talked about nearly 200 professors who had benefited from overseas postings, about the chance to try out new ideas. But what, really, had Yale learned? What did its students now know that they had not? "I put Asian books in my class that weren't there before," Lewis told me. Small steps. If Yale has learned anything, it might have been what Sleeper feared most: the bureaucratization of education, the sucking dry of the spirit of the university.

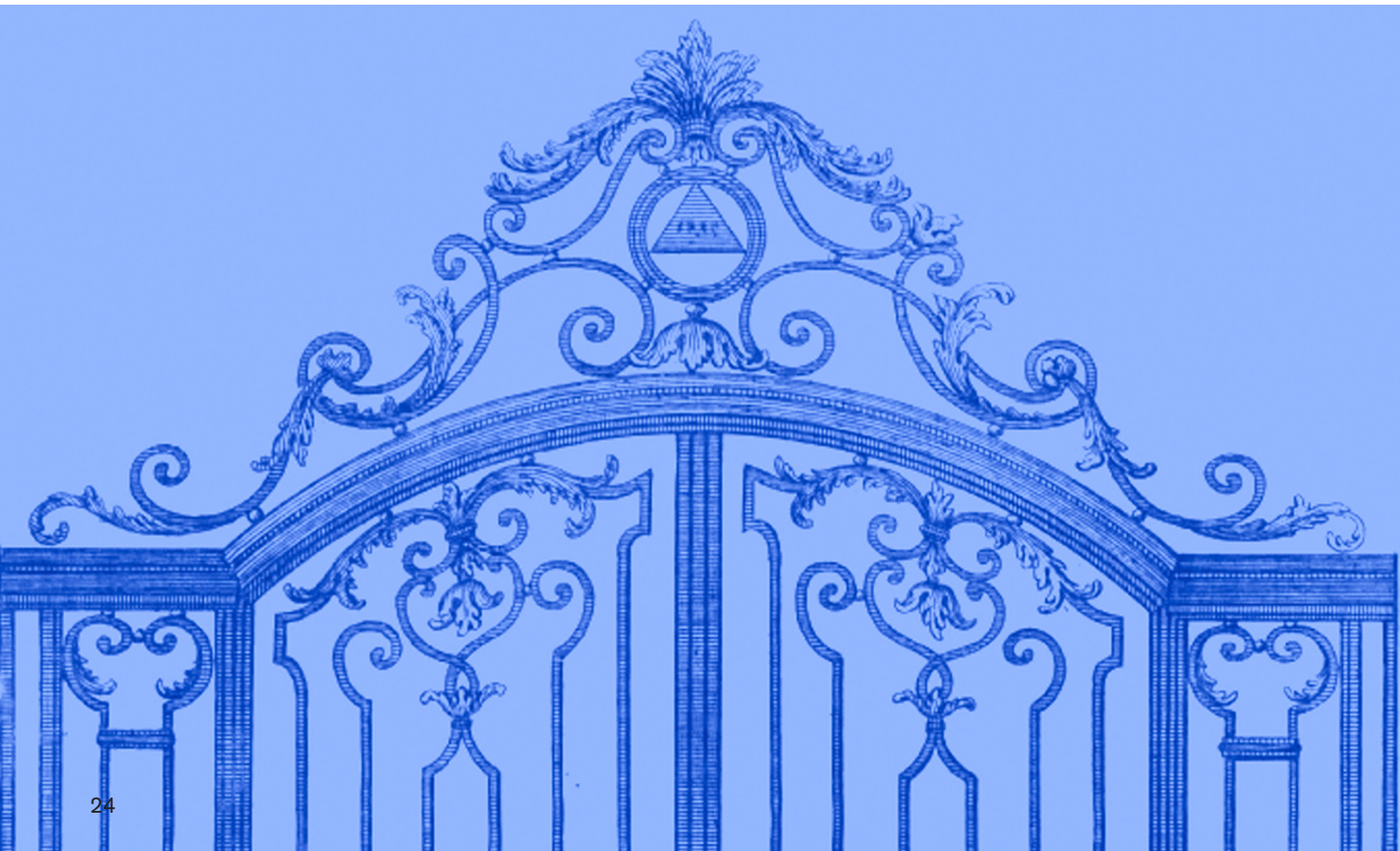
And yet: Despite that blurry vision and those trenchant concerns, the founders may have succeeded in their goals of renewal, revival, and restoration. Sagna certainly seemed to think so. "I'm not convinced that the education at Yale is that much better than it is at Yale-NUS."

Fischer said that one of the things that a lot of people who believed in Yale-NUS and the universal of the liberal arts will be looking at is how much of Yale-NUS is left in the new college. "Of all this effort, all this time, all this commitment, [what's left?]"

The next four years will begin to show the answer, as Yale decides what the end of its grand overseas adventure means for itself and NUS College is molded and formed. But I'll attempt to offer some early prognostication. What Yale-NUS was for Singapore will not be repeated — not in NUS College, not for some time. Nor will Yale embark on such a ship easily — there will be too much skepticism, too much fear, too little courage to rethink anything here or at home. But there is a legacy that will be passed down. The conversations that were had about the purpose of education, whether they were critical or euphoric, will be part of that. And the students, more than anything else, will be the evidence of that — embodiments of the liberal arts tradition wherever they go.

Yuen remembered entering Yale-NUS as an unquestioning patriot. Now she's less certain that Singapore is the place for her. "I do enjoy having my thoughts heard once in a while," she told me. For Yuen, and for thousands of other students, Yale-NUS did what college is supposed to do: It changed their lives.

That is perhaps the greatest victory and the greatest tragedy of this whole saga. Even as Yale has often failed in its mission, Yale-NUS did what Yale has sought to do for the last 50 years: prove that a liberal arts education matters. And that's what killed it.



CUTTHROAT

A Battle for the Future of Antitrust

cut·throat
/ˈkətTHrōt/ *adjective*

(of a competitive situation or activity) fierce and intense; involving the use of ruthless measures.

relating to or being a game or contest in which each of three players scores individually against the other two.

BY **RACHEL SHIN**

UNLIKE BLACK FRIDAY sales, college admissions, and Yale course registration, antitrust law is not commonly described as cutthroat. Indeed, until about five years ago, antitrust, which determines how companies can legally compete in the U.S. market, was a staid regime experiencing a decades-long ossification, or "ice age," as Lina Khan, chair of the Federal Trade Commission, said in a *New York Times* interview. However, within the last few years, antitrust has thawed under the rays of anti-establishment sentiment. The field, dominated for half a century by a conservative ethos, is witnessing

the advent of a new band of reformers seeking to reconstruct the pillars of U.S. competition law.

Beneath the apparent tranquility, the casualties of frozen enforcement have accumulated in big cities and small towns alike. Nina Barrett is the owner of the independent bookstore Bookends & Beginnings in Evanston, IL, and the sole named plaintiff in an ongoing class-action lawsuit against Amazon. The lawsuit claims that Amazon colludes with publishers to fix prices and edge out small booksellers like Barrett. For her, aggressive government intervention is sorely needed and long overdue.

"One of the great joys of being in New York used to be walking into some store that only sold different kinds of buttons or every single type of Italian stationery," Barrett told *The Politic*. "All of that has been really crushed and decimated… And in a small town, stores knit the community together. They create the character of the downtown of the community. When you have a downtown that has a bunch of empty storefronts, it becomes a ghost town, and it psychologically affects how people are rooted in their communities and the identity of cities."

Long before its calcification, antitrust law sprang forth in the heat of battle. Congress erected the first pillar of antitrust in 1890 by passing the Sherman Antitrust Act. The Sherman Act is staunchly and broadly against any consolidation of economic power. It outlawed "[e]very contract, combination in the form of trust or otherwise, or conspiracy, in restraint of trade or commerce among the several States." The Supreme Court somewhat narrowed its exhaustive scope in 1911 after successfully breaking up John D. Rockefeller's Standard Oil Company in the landmark case *Standard Oil Co. of New Jersey v. The United States*. The Court reframed the Sherman Act's prohibition of "every" restraint of trade to only "unreasonable" restraints. Then, in 1914, Congress enacted the Clayton Act, which addressed mergers and acquisitions, and created the Federal Trade Commission, an independent antitrust regulation agency. The new reformers currently taking antitrust by storm look to this period as a model for their rigorous enforcement ideology.

Under the banner of former Supreme Court Justice Louis Brandeis — himself a seminal antitrust figure — these reformers are seeking to renew and restore his populist zeal. This new school of thought is hailed by many names but is most widely known as the New Brandeis School. The emergence of the New Brandeisians, described by Khan (herself at the fore of the movement) as "the first trickle of progress," was the first trickle of blood in this intellectual battle. Three major camps — the Chicago, Modern, and New Brandeis Schools of thought — have now planted flags in the increasingly crowded turf of antitrust.

A cutthroat conflict is ensuing, and like any great contest, the stakes are high. The results of this battle will make waves in global politics, privacy, big tech, national security, domestic and international business, and beyond. And the combatants are not pulling punches. Their discourse involves name-calling, Twitter wars, and scathing articles. *The Wall Street Journal* has published at least six pieces criticizing Khan since she took office, and in September, she released a memo emphasizing her aggressively anti-merger agenda. "It feels to the business community that the F.T.C. has gone to war against us, and we have to go to war back," CEO of the U.S. Chamber of Commerce Suzanne Clark said in the *Journal*. Figures within antitrust agree: "There is a lot of contention. I think there is a good amount of heat and bad blood," Daniel Crane, a law professor at the University of Michigan Law School, told *The Politic*. This heat will either reforge — dramatically or subtly — or further cement current antitrust law.

WHEN KHAN LAMENTS the antitrust ice age, she refers to the rise of the Chicago School. The Chicago School, also known as the Traditionalist school, is the oldest and least interventionist of the three approaches. In the 1970s and 1980s, legal and economic scholars at the University of Chicago revolted against the classical economic structuralist model of antitrust. Figures including Judge Richard Posner and Judge Robert Bork rejected the classical antitrust theory dating back to Senator Sherman that held that a market with a few large companies is less competitive than one with many smaller ones. Chicago School theory was highly influenced and directed by Bork's *The Antitrust Paradox*, advocating a laissez-faire antitrust framework, wherein efficiency and a belief in the self-corrective nature of markets reign.

Bork and the Chicago School developed the consumer welfare standard, a doctrine used to determine if regulation is necessary for antitrust situations. The doctrine primarily asks if consumers will be hurt by a move — and it gauges injury to consumers by the metric of price. They prioritize efficiency and the lower prices that typically accompany it, and so do not believe that a firm's accretion of wealth and size necessarily denotes anticompetitive conduct. The Chicago School disagreed with the established consensus that "Big is bad," and instead declared "Big isn't bad. Big behaving badly is bad," meaning that they take no intrinsic issue with consolidation unless it is decidedly anticompetitive.

The Chicago School's approach pulled antitrust away from its original Gilded Age populist ideology and has been ingrained in case law since the 1980s. The success of Chicago School proponents was rapid and near-total, confining subsequent antitrust enforcement to their ideology. Even as the internet, online marketplaces, and mobile technology revolutionize the economy, Chicago School theorists maintain that their 1970s regime remains satisfactory and sufficient.

"I generally think that a light touch is sufficient to keep the economy competitive. I also have the view that a number of the interventions that people propose would actually be harmful to economic efficiency and consumer welfare," Crane, a member of the Chicago camp, said.

However, in the 1990s, a new camp emerged, turning away from the Chicago School's price dogma toward increasingly sophisticated mathematical models and empirical analysis. This Modern (also known as the Post-Chicago or Expansionist) camp maintains the consumer welfare standard as antitrust's lodestar like the Chicago School but finds the Chicago model simplistic. Instead of assuming the market's self-correction, they use tools such as game theory and models to analyze its

functioning. While still targeting economic efficiency, they believe in fundamental reform to account for new anticompetitive realities in today's markets.

"The Modern approach recognizes that anti-trust law and policy have not been vigorous enough in recent years. Modernists favor stronger antitrust enforcement, building on what antitrust scholars and practitioners have learned in recent decades and reflecting how the economy has evolved over time," Carl Shapiro, former deputy assistant attorney general for economics at the DOJ, said in an article.

Despite their disagreements, for a few decades, debates between the Chicago and Modern schools were rather restrained. According to Crane, "on a 100-point scale, the conflict was about 20. And it was rather inconsequential, because that was the whole field." It was too civil a war to be characterized as a Civil War.

But then, in the late 2010s, a third camp arose and rocked the field. Though most widely known as the New Brandeisians, they have been dubbed and redubbed as the Transformationalists, Populists, Anti-Monopolists, and — derogatorily — the Hipsters. The New Brandeisians believe that U.S. competition law is in a state of crisis and, unlike the Modernists, their goal is nothing less than to radically supplant the prevailing Chicago School philosophy.

"The status quo is unacceptable, even more unacceptable than it was back in the origins of antitrust law in the United States with railroads and oil companies," Megan Gray, tech and privacy attorney, told *The Politic*. "Now with big tech, their dominance is just so much more staggering. In terms of their wealth, but also in their ability to impact how we perceive the world."

In truth, the New Brandeisians are more "Traditionalist" than the Chicago School, as their philosophy harkens back to the original tenets of U.S. antitrust. They want to reinstate the primacy of egalitarianism and competitive market structure that motivated antitrust reforms in the early 20th century. New Brandeisian philosophy espouses the protection of democratic values — not simply economic efficiency — through antitrust enforcement. They believe in applying much stricter measures on big businesses to preserve a decentralized market structure, even if deconcentrating the market yields higher prices.

"The status quo is unacceptable, even more unacceptable than it was back in the origins of antitrust law in the United States with railroads and oil companies."

In deconsolidating the market, they hope to increase opportunities for small businesses, diversify consumer choice, and attenuate inequities. However, these changes may come at a literal high price — redistributing economic power will certainly raise consumer prices for a range of goods and services. But in return, consumers will get a more robust intellectual and physical marketplace and higher quality goods, Khan said. And more abstract, novel rights in antitrust's consideration such as privacy and consumer data will be protected, Gray said.

They also advocate for a broader definition of consumer welfare and see the Chicago-originated consumer welfare standard — which equates lower prices to higher welfare — as an inadequate barometer of market health.

THIS FOCUS ON PRICE in the consumer welfare standard is a major bone of contention between the New Brandeisians and their more conservative counterparts, especially adherents of the Chicago School. In her widely impactful article "Amazon's Antitrust Paradox" — a play on Bork's *The Antitrust Paradox* — Khan argues against Bork's consumer welfare standard. This article had a seismic effect on the field; it precipitated the current antitrust battle and crystallized the New Brandeisian movement.

In the article, Khan postulates that price is not always an accurate reflection of overall welfare: "[F]ocusing on consumer welfare disregards the host of other ways that excessive concentration can harm us — enabling firms to squeeze suppliers and producers, endangering system stability (for instance, by allowing companies to become too big to fail), or undermining media diversity, to name a few." Khan laments that in *The Antitrust Paradox*, "a concern about structure... was replaced by a calculation (did prices rise?)." The New Brandeisians advocate an approach that demotes the primacy of price to just one of many elements of consumer welfare. They heavily val-

ue the distribution of power and the democratization of competition.

But both the Modern and Chicago Schools vigorously disagree with overhauling the consumer welfare standard. "How can lower prices not reflect the interests of the economy?" George Priest, an antitrust professor at Yale Law School and original member of the Chicago School, said in an interview with *The Politic*. "The failure of the National Industrial Recovery Act during the Depression proves that higher prices disservice workers and businesses alike," he said.

Chicago School scholars also stridently argue that price is a necessary benchmark *because* of its calculability. Crane fears that, if the consumer welfare standard was eliminated, the courts would have "very arbitrary control over business that allows competitors to take advantage to actually use antitrust law to stop their competitors from competing more efficiently."

However, Khan contends that the context has changed and that price in today's internet economy is a deeply unreliable metric. She asserts that Amazon is fabricating the illusion of consumer welfare by strategically sustaining below-market prices. Amazon, Khan says, disguises predatory pricing tactics as a boon to consumers.

Barrett feels that lower prices are part of a Faustian bargain that has deep-reaching and not readily recognized negative consequences.

"It's my impression that the judicial thinking on price competition is that, as long as the consumer is saving money, everything's okay," Barrett said in an interview with *The Politic*. "And do I think that should be the only guiding principle? No, because there are other considerations besides whether the customer is saving money, especially if the customer is saving money because of predatory pricing practices. Amazon can drastically mark down the price of books. And because they've become so dominant in the marketplace…they have devalued what books are actually worth — what price needs to be paid for them for the whole industry to be sustainable."

Amazon can afford to undercut book prices by increasing the cost of merchandise in other branches of its sprawling empire. But for publishers and booksellers (especially independent booksellers like Barrett) their only options are to devalue all their books to retain customers, or to narrow the diversity of their stock to sell more bestsellers, Khan explains in her article.

New Brandeisians fervently believe it is in the interests of antitrust to address and regulate this sort of situation, even if it results in higher prices. They take a more holistic view of antitrust and the economy in general, not striving for pure efficiency. Market diversity is among their central concerns.

These starkly differing attitudes on the consumer welfare standard speak to the fundamental rift between the Chicago and New Brandeis positions on the value of small business.

"What I think the consumer welfare standard is excluding, and I think rightly so, are things like protecting small business for small business's own sake — protecting less efficient competitors just because we want more companies in the market, even if they don't contribute to economic efficiency and actually drag it down — just being averse to large organizations just because we want small and not big," Crane said.

THE CHICAGO SCHOOL has derided the New Brandeis School as "Hipster Antitrust." The term was originally a hashtag but gained widespread use after Senator Orrin Hatch said in a 2017 speech on the Senate floor that the "hipster" movement "amounts to little more than pseudo-economic demagoguery and anticorporate paranoia." Name-calling has even made its way into academic literature. Former Federal Trade Commission (FTC) commissioner Joshua Wright titled his article "Requiem for a Paradox: The Dubious Rise and Inevitable Fall of Hipster Antitrust" — continuing a nesting doll of wry antitrust references.

"I was kind of surprised by the name-calling ," Khan told the *New York Times*. "I think it's designed to be a pejorative to try and minimize the movement, but I do think that it also suggests that these ideas are powerful and threatening to a lot of very rich people. And so I think it's inevitable that we're going to see some tantrums, some backlash."

While heat between the Chicago and New Brandeis Schools comes as no surprise, what may be unexpected is that there can be even more vitriol between the Modernists and the New Brandeisians. Though they fundamentally agree on the need for reform in the field, their relationship can be bitter. The crux of their argument is economics.

"Neo-Brandiesians are against using economics. Period. They want to make the antitrust laws work as a matter of rights and democracy," Fiona Scott Morton, an antitrust professor at the Yale School of Management, told *The Politic*.

Though these camps seem to share the common goal of reforming antitrust, albeit to different degrees,

"[An antitrust revolution] is so overdue. I can say as a small business person that monopolies are strip-mining people's communities and downtowns."

their relationship can be antagonistic, as they clash on how to execute the change. Their animosity exists because Modernists want to ground antitrust in increased economic analysis, while New Brandeisians find this antithetical to their populist credo.

"I actually would pin [the problem with the antitrust establishment] on economists in general," Matthew Stoller, director of research at the American Economic Liberties Project, said in an online discussion with Joshua Wright. "Economics today is not designed to uncover truth…It's a language of governance. It's designed to exclude the public from influencing political economy…There is a reification of expertise such that economists are kind of making all sorts of value judgments because they spent a few years getting a Ph.D., and they look down upon the public and voters."

At issue between the New Brandeisians and the Modernists is what the fundamental nature of antitrust decisions and policies should be: economic or political.

"Fundamentally, when you're thinking about how you structure markets and corporations and banks, these are social decisions. These are political decisions, they're not decisions that you can just say, well, I know the most efficient or right answer," Stoller said.

Florian Ederer, an economics professor at the Yale School of Management, concedes that economic literature can be inaccessible to the public but espouses a more data-driven perspective and holds that antitrust cannot move forward without a grounding in empirical economic findings.

AS THE CONFLICT HAS INTENSIFIED, this disagreement moved out of the halls of academia and into public venues that may seem more suited to airing spats between social media influencers. Specifically, New Brandeisians have taken to Twitter to critique settled antitrust and economists more broadly.

In an article for the American Bar Association, former FTC chair William Kovacic likened New Brandeisian reform efforts to the OODA (Observe, Orient, Decide, Act) Loop used in military strategy. He identified social media tactics as an integral part of their campaign. The OODA loop calls for instantaneous observation of and reaction to enemy movements. The New Brandeisians emulate this agility by adapting the tone of their tweets as the situation calls. Sometimes it is sarcastic, undermining the perceived untouchability of academics: "In the past, I have compared neoclassical economists to astrologers. I sincerely regret that comparison and want to apologize to astrologers," Sandeep Vahessan, legal director of the Open Markets Institute wrote on December 30.

Other times their tone is sober and accusatory, pinning ethical and moral failings on the current establishment: "It is important to remember that most economists and conservative antitrusters frequently and casually ignore and disregard the human cost of business decisions," Daniel Hanley, senior legal analyst at the Open Markets Institute, wrote on December 28.

But often, their tone is angry and their callouts biting. They employ a "take-no-prisoners denunciation of opponents, especially in media such as Twitter," wrote Kovacic. And in their denunciations, they are not afraid to point fingers and name names.

"The regular condescension towards Lina Khan from antitrust status quo adherents Fiona Scott Morton and Herb Hovenkamp is just infuriating. The monopoly mess is their fault, you'd think they'd have some humility," Stoller wrote on April 24.

Kovacic lauds the New Brandeisians' "mastery of social media," saying that "[i]n a conflict over ideas, the skillful use of Twitter can provide the high level of adaptability and mobility that keeps the user several steps ahead of rivals…Twitter helps transformation commentators attack opponents rapidly and forcefully — challenging their arguments and, frequently, questioning their motives."

In this way, the New Brandeisians utilize a guerilla approach that accounts for their influence in online media.They combine lobbying on a federal level with Twitter skirmishes to harry established antitrust. Their savvy in levying popular resistance and disseminating ideas among the public is one of the few things widely agreed upon within the field. Even their opponents commend the New Brandeisians in their ability to revitalize political interest in antitrust and enlist public opinion on the issue.

"One thing that I think is actually very healthy about this moment is that for a long time, since the 1970s, antitrust had become very insular, very self-referential, very technocratic. It was kind of run by an establishment of lawyers and economists or professionals, and there wasn't a lot of public consultation. I do want it overall to be technocratic. But I do think it is important that occasionally there's democratic oversight…so even though I don't hope that New Brandeisians win the day, I appreciate them engaging these questions," Crane said.

Though a Modernist, Ederer also "respect[s] Lina Khan and the other New Brandeisians for bringing new excitement to antitrust," although they have not changed his perspective, he told *The Politic*.

Though the New Brandeisians have been successful in rallying public support for their movement, predictions for their overall success are mixed. They hope that the near future will see a complete realignment of the antitrust paradigm. Whether this revolution is coming, or if it is already upon us, remains a matter of dispute.

"[An antitrust revolution] is so overdue. I can say as a small business person that monopolies are strip-mining people's communities and downtowns," Barrett said.

And according to Crane, the Chicago School, the group most avidly trying to preserve the 1980s framework, is "a vanishing camp." But though they are the oldest group — and perhaps most weary, Kovacic adds — they are still the most securely ensconced in policymaking. So, it remains unclear what shape antitrust will take upon emerging from this crucible of contention. Ultimately, Scott Morton says, the courts will solely anoint the victor of the battle.

As the combat escalates and public opinion and scrutiny increasingly come into the fray, these three players will continue to vie for the future of their field. The one thing everyone should expect is more heat — a lit match has already been tossed into The Antitrust Tinderbox.

A RED STATE GO GREEN

BY **BRYSON WIESE**



IN 2019, AS THE U.S. experienced its wettest spring on record, the Mississippi River and its tributaries overran their banks. One million acres of farmland flooded — an area the size of Rhode Island. In Nebraska alone, the unprecedented rainfall killed three residents, drowned thousands of cows and pigs, and caused over $1 billion in property damage.

"I very specifically remember the Facebook parade of just absolutely absurd photos of people in kayaks in places where you should never have a kayak," said John Brockmeier '22, a Yale student from Kearney, NE, a town of 30,000 along the Platte River.

Despite scientific evidence linking increased precipitation in the Midwest to climate change, Nebraska's reliably red elected officials have not acted to reduce greenhouse gas emissions. In 2020, the conservative-controlled Nebraska legislature blocked a proposal to even study the impacts of climate change on the state. Republican Governor Pete Ricketts, who said that the floods caused "the most extensive damage our state has ever experienced," has emerged as one of the most vocal opponents of the Biden administration's climate policy.

Yet in December 2021, Nebraska became the first Republican-controlled state with plans to reduce carbon emissions from electricity to net zero by 2050. This goal brought Nebraska in line with the widely used net zero timeline that has underpinned international climate negotiations, including the 2015 Paris Agreement. The driving force was not Nebraska's governor or state legislature, but the state's three major electricity providers, which, driven by environmental activists, announced their intentions to decarbonize.

Although these decisions did not make national headlines, the Nebraskan resolutions highlight how utilities can be key actors in the global fight for net zero emissions. The ability of Nebraska's environmental groups and utility officials to advance climate policy — independent of the state's governor and state legislature — may

DES



Nebraska's tilities Plan to Decarbonize

offer a roadmap for other states where climate action has stalled.

WHEN MARY HARDING DECIDED in 2002 to run for a seat on the board of the Nebraska Public Power District (NPPD), the state's largest electric utility, she did not even raise enough money to file a campaign finance report. Harding's fight to decarbonize Nebraska began uncontested — her opponent, who advanced with her through an open primary, dropped out before the general election.

At the time, Harding served as the executive director of the Nebraska Environmental Trust, a state grant-making program funded by the Nebraska Lottery. Environmental issues, including nuclear waste and climate change, motivated her to run for one of the eleven seats on the NPPD's non-partisan board. "When I was administering grants, I became exposed to a large number of scientists who were concerned at an early point about climate change and global warming," Harding explained. "The science was compelling to me. So it's been something that I wanted to do something about in my own small way."

In 2021, Harding became board chair. Under her leadership, the Nebraska Public Power District (NPPD) voted 9-2 to set a non-binding goal of reaching net zero carbon emissions by 2050, adopting a target used by over 150 countries, a dozen states, and many Fortune 500 companies. Climate scientists say the world must reach net zero emissions by 2050 in order to limit warming to 1.5° C, the threshold for avoiding runaway climate change.

For Harding, the net zero target was the culmination of 18 years of advocacy. "This resolution has been a personal priority of mine since I joined the board, really," she said. "It's been a long and delicate slog over a couple of decades to get to the point where we were able to see the sense in decarbonizing." To pass the resolution, clean energy advocates had to both elect new environmentally-minded board members and win support from some incumbents.

Given the non-binding nature of the resolution, the vote represents a signal to NPPD management that can help shape future decision-making. The one-page resolution explicitly

The utilities' influence over climate policy has put board members in the crosshairs of interest groups, including environmental activists and the state's industrial electricity consumers.

mentioned potential decarbonization strategies such as certified carbon offsets, energy efficiency projects, lower-carbon power sources (such as wind and solar), and electrification initiatives.

The NPPD's 2021 vote followed actions by Nebraska's two other major utilities, the Omaha Public Power District (OPPD) and the Lincoln Electric System (LES), in 2019 and 2020. The Omaha- and Lincoln-based utilities provide electricity to the state's two largest cities, while the NPPD services most of the state's rural customers, who tend to be more politically conservative. With all three public power districts aiming to reach net zero, Nebraska became the first Republican-controlled state with a goal of decarbonizing almost its entire electricity sector. Environmentalists hope that Nebraska's majority-coal energy mix will begin to look more like that of neighboring Iowa, where wind energy has surged to provide 40% of electricity, up from less than 10% in 2005. Nebraska currently generates around 20% of its electricity from wind and practically none from solar.

The utilities' influence over climate policy has put board members in the crosshairs of interest groups, including environmental activists and the state's industrial electricity consumers. Indeed, Harding's most recent reelection race in 2020 looked very different from her first uncontested foray into politics. "Now, it's the same kind of unbelievable politics we have in nearly any race nearly anywhere in the country," Harding lamented in a phone call as she ran errands with her husband. "There was one mailer put out about me saying I was a carpetbagger. I'm a seventh generation Nebraskan! The mailer was saying I don't even live here." Even Governor Ricketts, the son of TD Ameritrade billionaire Joe Ricketts, waded into the fray, donating $5,000 to support Harding's opponent, Todd Calfee. Nebraska's Republican Party spent $41,256 opposing Harding, despite the technically nonpartisan nature of the race.

Harding raised around $50,000 in her 2020 bid, three times more than the $17,000 she raised just one cycle ago in 2014.

CHARLIE KENNEDY, another supporter of the net zero resolution, is a more recent addition to the NPPD board. He ran for office at the urging of a nationally-prominent environmental group, the League of Conservation Voters (LCV), and its Nebraska chapter, Nebraska Conservation Voters (NECV).

The LCV cold-called Kennedy after the organization spotted that he was one of the first NPPD customers to buy into a local solar project and heard his name mentioned as an active community member. "I would never have thought of doing that myself, but the more I looked at it, where things were at with Nebraska... it just seemed unacceptable to me," Kennedy said of his run for office. In particular, he became concerned when he learned that the majority of Nebraska's power came from just a handful of coal plants. Kennedy trounced an incumbent who was less supportive of clean energy, winning almost every county in his rural territory.

Besides Kennedy, the NECV helped recruit other candidates for the NPPD and the Omaha and Lincoln utility boards. During the 2016 cycle alone, the group organized volunteers who knocked on 20,000 doors, made 15,000 live calls, and sent 88,000 mailings. In 2020, the LCV spent a reported $500,000 on utility races in Nebraska. The LCV has stayed involved past election days, too, offering guidance on how board members should vote. The NECV and its executive director, State Senator Eliot Bostar, did not respond to requests for comment.

Harding herself served as executive director of NECV from 2007-2009 while on the NPPD board, which is a part-time position. However, she said that during her tenure, the group's electoral work only focused on state legislative races, not utility board seats.

Clean energy opponents took notice of the LCV's success. These opponents included the state's powerful ethanol industry, a major electricity consumer which fears that a shift to wind and solar may create supply issues and raise rates. "For ethanol producers the reliability and affordability of electricity are critical," said Dawn Caldwell, the executive director of the ethanol trade association Renewable Fuels Nebraska, in an email. "Ethanol producers appreciate that alternative sources of electricity may be utilized but must have a reliable source of electricity in case of low generation from wind/solar." Renewable Fuels Nebraska

was among the donors to a PAC that opposes pro-clean energy candidates, including Harding.

Yet despite well-funded opposition, clean energy advocacy in Nebraska has become a rare bright spot for environmentalists in red states. Over the past three election cycles, the slant of the NPPD board has grown friendlier to renewables. Voters in 2016, 2018, and 2020 elected a cohort of LCV-backed candidates that included an Independent (Melissa Freeland), a Republican (Bill Hoyt), and a Democrat (Gary Thompson). Out of the 11 total board members, Harding and Johnson are the only ones who responded to requests for comment.

According to Johnson, the board now includes six members who consistently "want to see more green energy" and five who take the more traditional approach that "we have to listen to our wholesale customers, we can't make them mad." Out of those five traditional board members, three joined the environmentally-minded bloc to support the net zero resolution. "I think there was a little bit of fatigue," Johnson said of the three board members who were won over. "You know, we can't fight this anymore."

The trio was also persuaded by NPPD CEO Tom Kent, who runs the utility day-to-day as an unelected operator, and some of the NPPD's wholesale electricity customers. "Tom is very well-regarded for being very pragmatic," Kennedy explained. "Him being on board helped convince them. And then some of the wholesale customers kind of said, you know, 'Everybody else is doing this… we can live with it.'"

Harding says that the new board members alone were not sufficient to make the resolution possible. Building consensus around net zero required first gathering information and consulting with stakeholders."Even with the turnover, we would never have gotten the votes if we hadn't done the groundwork," she reflected.

THIS GROUNDWORK consisted of collaboration between the NPPD's board members and its day-to-day management team, including Kent. Together, they spent three years in the run-up to the resolution consulting with experts to assess economic, regulatory, and technological trends.

The NPPD leaders found that the trends pointed toward decarbonization. "We anticipate requirements to reduce carbon footprints will continue to increase due to customer expectations, other business considerations and regulatory policies," said Grant Otten, an NPPD spokesperson, in an email. Otten cited concerns from rating agencies, lenders, investors, and insurance companies about the future of carbon-intensive businesses. He also noted that consumers of Nebraska's agricultural products increasingly consider the carbon footprint of those products, meaning that decarbonization could deliver value for farmers and ranchers.

Many national leaders share the NPPD's view. "The cost of wind turbines and solar panels continues to fall drastically, making renewable energy competitive with, or less expensive than, burning fossil fuels," former California Governor Arnold Schwarzenneger said in a statement to *The Politic*. "Clean energy is best for consumers." Under the leadership of Schwarzenneger, a Republican, California became the first state to adopt a cap on carbon emissions in 2006.

Yet over the short-term, the economics of the energy transition still remain daunting for Nebraska's utilities. Nebraskans enjoy some of the lowest electricity rates in the country, paying an average price per kilowatt hour of only 8.97 cents. The national average is 10.59 cents; Connecticut's rate is one of the highest at 19.13 cents. In Nebraska and other red states, such as Wyoming (8.27 cents) and Texas (8.36 cents), low rates derive in part from proximity to cheap fossil fuels.

Just northwest of Nebraska sits the Powder River Basin, offering Nebraskan power plants easy access to the country's foremost coal-producing region. "The cost of our coal is among the lowest in the nation," Harding explained. "So there's an economic advantage for our customers." This economic advantage means that relative to states with higher fossil fuel costs, Nebraska has less incentive to immediately transition to clean energy.

Moreover, utility business models are not meant to absorb the capital costs of building new low-carbon infrastructure as quickly as possible. The NPPD and other electricity providers expect their fossil fuel-powered plants to last for decades, meaning that retiring these plants early — without significantly cheaper alternatives — may lead to unanticipated expenses that are passed onto consumers.

Given this limitation, efforts to

overhaul the NPPD's energy mix could take decades. "There's such a long timeline to plan our resources," Harding explained. "You know, most of our baseload plants are 40 years old, some are 50 years old." This long time horizon also creates an opening for cleaner sources of electricity generation and storage. "We're thinking with the timeline, we've got 30 years, the technology's got time to be there," Harding said.

IT IS NOT JUST NEBRASKA'S politics that have evolved since Harding first joined the NPPD. The state's weather has changed, too.

"When I first started, we did not have annual capital catastrophes," Harding said, referring to weather damaging the NPPD's infrastructure. "There was one year in the early 2000s when we had a horrific ice storm… It's come to be an annual event, where some extreme weather takes out a dam or takes out power lines."

But voters do not necessarily view the extreme weather as evidence of human-caused climate change. "It would be very rare for a farmer or rancher to talk about climate change," explained Brockmeier, whose maternal grandparents and other extended family members have worked in Nebraska's agricultural sector. "But I've certainly heard farmers and ranchers talk about the weather being different than it was 20 years ago."

Brockmeier's uncle, a rancher, experienced this extreme weather directly. In addition to flooding Nebraska's rivers and plains, the March 2019 storms also brought unprecedented snow and ice to the state, which impacted livestock. "The way the normal ranching operation works is that calving is anywhere between like the end of February and middle of April. March is your calving month," said Brockmeier. "My uncle was hauling away a pickup load of dead cows from just kind of a very, very unusual March storm."

Brockmeier, who studies the history of the American West at Yale, described policy in Nebraska as "beholden" to farmers and ranchers. "They're very, very, very knowledgeable about what they do," he said. "But they come from very, very, very conservative cultural backgrounds in that everyone's Protestant and everyone basically came over from some European country in the 1880s."

The NPPD's 9-2 vote for the net zero resolution did not come about because of widespread voter recognition of climate science — or even because of popular demands for clean energy. Instead, when Harding and other clean energy advocates ran for the NPPD board, they focused on what she called "pocketbook" issues. These bread-and-butter concerns included not just electricity rates themselves, but also more general economic issues and counties' tax burdens. "I talked about the need to modernize the system, the economic benefits of transitioning to wind and solar power, the property tax relief that is available for counties when those go in," Harding said.

Every six years when Harding runs for reelection, she goes door-to-door to speak with voters. She has not seen support for clean energy increase since her first election in 2002. Rather, as political polarization and misinformation have intensified, Harding says that the opposite is true. "What I've noticed over the last couple of decades is that support for new technologies like wind and solar has been declining," Harding said. "There is a proliferation of bad information — you know, wind turbines give you cancer. Solar reflections are going to interfere with the productivity of your cows."

Empirical opinion polling from Nebraska is sparse and possibly outdated. According to a 2015 survey by the University of Nebraska Lincoln, three-quarters of rural Nebraskans believed that the state should invest much more or somewhat more in wind and solar. However, a majority of rural Nebraskans (52%) also believed that the state should invest the same amount in coal.

To some extent, the net zero resolution reflected this tension. The 2050 target gives the NPPD a long timeline and significant flexibility, rather than the swift transition to renewables that some climate advocates desire. "For me, I think the faster we can decarbonize, the better," Harding remarked. "But for this utility, that didn't really fit as well. It wasn't the middle ground we needed."

MANY OF NEBRASKA'S institutions, including its utilities, are anomalies. During presidential elections, political analysts must explain the state's habit of allocating electoral votes by congressional district, rather than aggregating them statewide. This system, shared only by Maine, enabled President Biden to win one of Nebraska's five electors in 2020. Nebraskans are also the only Americans represented by a nonpartisan, unicameral state legislature. So it follows that while 49 states rely on a hybrid of investor-owned and publicly-owned utilities, Nebraska is the only state that effectively requires that utilities be publicly-owned. As a result, the three major public power districts dominate the grid.

Elsewhere, the utility landscape looks more complicated. Robert Klee, a former commissioner of Connecticut's Department of Energy and Environmental Protection, called utilities "a real sleepy sort of backworld and very arcane world."

"It's a world with its own language, its own set of laws," explained Klee, who now lectures about subnational climate action at the Yale School of Environment. "It has origins back in the regulation of railroads, so the 1800s."

Nebraska's three major power districts are publicly-owned utilities (POUs). Other POUs, such as the Los Angeles Department of Water and Power, are typically affiliated with municipal governments and depend on cities for funding and oversight. By extension, municipal policymakers often call the shots on how utilities approach climate policy. Some POUs, including the three major Nebraskan utilities, are governed by elected boards, giving voters a say, too.

Beyond Nebraska, most electric companies are not public. Investor-owned utilities (IOUs) provide about 72% of electricity in the U.S., usually under the watchful eye of state-level regulatory bodies known as public utility or public service commissions. These commissioners are sometimes elected, offering an opportunity for voters to influence utility regulation. The League of Conservation Voters (LCV) has invested in utility commission races in states like Arizona, where the group identified an opportunity to flip the Arizona Corporation Commis-

sion. In Georgia, an LCV-backed candidate for the Georgia Public Service Commission made headlines when he qualified for the January 2021 runoff that also determined control of the U.S. Senate. The candidate, Daniel Blackman, lost narrowly to a more conservative incumbent.

Non-profit cooperatives ("co-ops"), found most commonly in the rural Midwest and Southeast, offer perhaps the most unique utility structure. Authorized as part of President Franklin Roosevelt's Rural Electrification Act of 1936, the organizations are owned by members who receive electricity. The U.S.'s 812 co-ops serve just 25,000 members on average, but in total, the non-profits provide electricity to more than 40 million American customers. Co-ops often depend on legacy coal plants, are governed by opaque boards, and face financial challenges that stymie investments in innovation.

The NPPD buys and sells electricity from Nebraska's co-ops, such as the Elkhorn Rural Public Power District. Some of these co-ops — concerned by the NPPD's shift toward cleaner alternatives — formed a PAC called Nebraskans for Affordable and Reliable Electricity (NARE), which opposed Harding and other LCV-backed candidates. NARE did not respond to requests for comment.

Public utility board members like Harding and Kennedy, along with the utility regulators who oversee privately-owned electricity generation, are on the frontlines of the climate fight. "They are the implementers of so much of what actually gets built in the energy space," Klee said. "And we're going to be needing to build a lot of stuff."

Putting the right people in the right roles is important. "We get real innovators in that space, who see the levers they can pull," Klee said. "And there's this growing cohort of utility commissioners that are really fantastic and are thinking about these things."

As utilities and utility commissions receive more attention, the challenges that they face have become clearer. Schwarzenegger recently authored an opinion piece in the *New York Times* warning that California's utility commission might implement a "solar tax," requiring homeowners with solar panels to pay more toward the collective upkeep of the grid. Supporters argue that the system would be fairer for apartment owners and those who cannot afford solar panels.

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Schwarzenegger emphasized that climate advocates must focus on the benefits of renewables beyond emissions reduction. "Trying to get utility regulators to focus on climate change is a losing proposition," he said. "It is much smarter to talk to them about their bottom line." In addition to renewables often costing less, he said, wind and solar also "don't produce pollution which kills hundreds of thousands of Americans every year and is increasingly being taxed throughout America."

In total, electricity accounts for about 25% of U.S. greenhouse gas emissions. This share may grow as more sectors, such as transportation, shift toward electrification in order to decarbonize. Power companies have significant influence over decarbonization, but since electricity represents only a fraction of total emissions, net zero commitments by utilities do not have the same impact as state-wide or national-level net zero policy making. Some notable sources of emissions, such as cement production and agriculture, lie outside of utilities' purview.

AS FEDERAL-LEVEL CLIMATE policy stagnates, the mantle of climate action has increasingly shifted down the ballot. After President Donald Trump pulled the U.S. out of the Paris Agreement, a "We Are Still In" coalition of cities and states stepped up. The mostly-Democratic governors and mayors pledged to deliver the U.S.'s emissions reduction commitments even without federal action.

Utilities may have more limited influence than these governors and mayors. Yet officials like Harding make key subnational decisions with decarbonization implications, often in the face of intense pressure from interest groups.

Harding is a registered Democrat in a red state and a climate advocate represented by a governor who rejects climate science. "She's made some enemies, you know, from people around the state because of her stance," Kennedy observed. "She's targeted by some of the conservatives as our 'Nebraskan AOC.'"

Harding, a mother of four and grandmother of three, cited her children and grandchildren as a motivation for her persistence. "I would do absolutely anything for them — even subject myself to public elections," she quipped.

But her point about the climate crisis was serious. "I would not be serving this year — I would have retired last time around, but I imagine myself on my deathbed," she said. "And my granddaughter's looking at me going, 'Everything was gonna be a disaster, and you walked away.'"



A Conversation with Haben Girma

Isiuwa Omoigui

The first Deafblind graduate of Harvard Law School, Haben Girma has spent her life advocating for disability justice and the importance of inclusion as a human rights lawyer. Girma is also a recipient of the Helen Keller Achievement Award and a member of the Forbes 30 Under 30 Class of 2016. Former President Barack Obama also named her a White House Champion for change. Using a braille communication system that she developed herself, Girma spoke with The Politic over text about her life, activism, and the ongoing fight against ableism.

How have your intersecting identities—being Black, a woman, deafblind, and the daughter of Eritrean refugees—informed how you think about inclusion and disability justice?

Girma: A lot of justice work started with an us vs. them mentality: oppressors vs. oppressed. But I don't have a community where I automatically experience full access and inclusion. My life has taught me to challenge simplistic stories and lean into complexity. When us vs. them stories don't work, then you must construct new stories.

In your memoir, you recount your father telling you as a child that your name means pride and standing up for freedom in Tigrinya. In what ways have you lived out that name? And how do you envision living out that name as you move forward in life?

Girma: We need to cultivate a sense of pride in our identities, especially those of us from underrepresented groups. Cultivating humility is important, too. I strive for both.

What has learning to take pride in your identities looked like for you? And what obstacles, if any, have you encountered in that process?

Girma: The obstacles are racism, sexism, and ableism. I am resisting those forces when I take pride in my identities.

Through your consulting work on accessibility, diversity, and leadership for organizations like the New York Times, Apple, and Oxford Law School, what have been your most important takeaways?

Girma: Society has a lot of work to do to end ableism. Ableism is the systemic practice of treating disabled people as inferior to non-disabled people.

When you introduced then-President Barack Obama and Vice President Joe Biden at the 25th Anniversary Celebration of the Americans with Disabilities Act, you remarked that "the drive for equality is not over." In terms of combating ableism and promoting equity, where do you think our society needs to go from here?

Girma: Right the burden of fighting ableism that

falls on the shoulders of disabled people. We need to radically change this system.

What kinds of policies will bring about that radical change?

Girma: That's an excellent question! Maybe Yale students would have some ideas. When we address barriers in our own communities, we make the world at large more accessible.

Without question, the pandemic has laid bare the inequities in American society along lines of race, class, disability, and more. Particularly regarding the growing number of people with long COVID-19— now considered a disability under the ADA— how should policymakers respond?

Girma: If organizations respected the ADA, people with long Covid would receive the accommodations and support they need. The ADA's promise of equality depends on enforcement by disabled people who already carry so much. This is why I am calling for a radical shift in addressing ableism.

Now, it's been over 30 years since the passage of the ADA. As the fight against racism, sexism, and ableism continues, what are your hopes for the next 30 years?

Girma: Most people understand that racism and sexism are wrong, but the vast majority of people do not understand ableism. I published my book to teach more people to notice ableism in their schools and communities. I hope our future will have more people advocating to end ableism.

In this future that you envision— one in which more people work to combat ableism— what should meaningful allyship from people without disabilities look like?

Girma: Nondisabled people can show allyship by listening to disabled advocates, and through listening, become advocates themselves. We want non-disabled allies to call out ableism and address barriers without waiting for a disabled person to encounter the frustration of dealing with those barriers.

This Black History Month, as we honor the struggles and triumphs of people of African descent throughout history, how do you see yourself fitting into that long lineage of civil rights advocacy?

Girma: I feel that Black History Month events of the past have often overlooked the work of Black disabled activists. I'm hopeful that this is now changing.

Are there particular Black disabled activists that inspire you?

Girma: Did you know Harriet Tubman was disabled?

Yes, I do.*

Girma: I'm glad! There are quite a few people who don't know.

With all of this in mind, what does activism mean to you?

Girma: Activism means using the skills, abilities, and resources you have to fight injustice. For some people, that means marching in the streets. For others, that means doing research and creating plans for change. Activists take time to think about how they can best help and then put those ideas into action.

**When Harriet Tubman was a young woman, a slave owner struck her in the head with a two-pound weight. As a result, she had what she termed "sleeping spells," which historians believe were epileptic seizures.*

I feel that Black History Month events of the past have often overlooked the work of Black disabled activists. I'm hopeful that this is now changing.

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